

LAWS OF MALAYSIA

REPRINT

Act 709

PERSONAL DATA PROTECTION ACT 2010

As at 15 September 2026

PUBLISHED BY
THE COMMISSIONER OF LAW REVISION, MALAYSIA
UNDER THE AUTHORITY OF THE REVISION OF LAWS ACT 1968
2026

PERSONAL DATA PROTECTION ACT 2010

Date of Royal Assent	2 June 2010
Date of publication in the *Gazette*	10 June 2010
Latest amendment made by Act A1727 which came into operation on	1 January 2025: s. 7, 11, 13 and 14; 1 April 2025: s. 2, 3, 4, 5, 8, 10 and 12; 1 June 2025: s. 6 and 9

PREVIOUS REPRINT

First Reprint	*2023*

LAWS OF MALAYSIA

Act 709

PERSONAL DATA PROTECTION ACT 2010

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title and commencement
2. Application
3. Non-application
4. Interpretation

PART II

PERSONAL DATA PROTECTION

Division 1

Personal Data Protection Principles

5. Personal Data Protection Principles
6. General Principle
7. Notice and Choice Principle
8. Disclosure Principle
9. Security Principle
10. Retention Principle
11. Data Integrity Principle
12. Access Principle

Division IA

Accountability of personal data

Section

12A. Appointment of data protection officer

12B. Data breach notification

Division 2

Registration

13. Application of this Division

14. Registration of data controllers

15. Application for registration

16. Certificate of registration

17. Renewal of certificate of registration

18. Revocation of registration

19. Surrender of certificate of registration

20. Register of Data Controllers

Division 3

Data controller forum and code of practice

21. Data controller forum

22. Register of Data Controller Forums

23. Code of practice

24. Commissioner may issue code of practice

25. Applicable code of practice

26. Revocation, etc., of code of practice

27. Submission of new code of practice by data controller forum

28. Register of Codes of Practice

29. Non-compliance with code of practice

Division 4

Rights of data subject

Section

30. Right of access to personal data

31. Compliance with data access request

32. Circumstances where data controller may refuse to comply with data access request

33. Notification of refusal to comply with data access request

34. Right to correct personal data

35. Compliance with data correction request

36. Circumstances where data controller may refuse to comply with data correction request

37. Notification of refusal to comply with data correction request

38. Withdrawal of consent to process personal data

39. Extent of disclosure of personal data

40. Processing of sensitive personal data

41. Repeated collection of personal data in same circumstances

42. Right to prevent processing likely to cause damage or distress

43. Right to prevent processing for purposes of direct marketing

43A. Rights to data portability

44. Record to be kept by data controller

PART III

EXEMPTION

45. Exemption

46. Power to make further exemptions

PART IV

APPOINTMENT, FUNCTIONS AND POWERS OF COMMISSIONER

Section

47. Appointment of Commissioner
48. Functions of Commissioner
49. Powers of Commissioner
50. Appointment of Deputy Commissioners and Assistant Commissioners
51. Appointment of other officers and servants
52. Loans and advances to officers and servants
53. Tenure of office
54. Revocation of appointment and resignation
55. Temporary exercise of functions and powers of Commissioner
56. Vacation of office
57. Remuneration and allowances
58. Delegation of Commissioner's functions and powers
59. Direction by Minister
60. Returns, reports, accounts and information

PART V

PERSONAL DATA PROTECTION FUND

61. Establishment of Fund
62. Expenditure to be charged on Fund
63. Conservation of Fund
64. Reserve fund
65. Financial year
66. Limitation on contracts
67. Bank accounts
68. Accounts and audit
69. Expenditure and preparation of estimates

PART VI

PERSONAL DATA PROTECTION ADVISORY COMMITTEE

Section

70. Establishment of Advisory Committee
71. Functions of Advisory Committee
72. Members of Advisory Committee
73. Tenure of office
74. Revocation of appointment and resignation
75. Temporary exercise of functions of Chairman
76. Vacation of office
77. Allowances
78. Time and place of meetings
79. Advisory Committee may invite others to attend meetings
80. Minutes
81. Procedure
82. Members to devote time to business of Advisory Committee

PART VII

APPEAL TRIBUNAL

83. Establishment of Appeal Tribunal
84. Powers of Appeal Tribunal
85. Members of Appeal Tribunal
86. Secretary to Appeal Tribunal and other officers, etc.
87. Tenure of office
88. Resignation and revocation of appointment
89. Temporary exercise of functions of Chairman
90. Vacation of office
91. Allowances
92. Disclosure of interest
93. Appeal to Appeal Tribunal

Section

94. Record of decision of Commissioner

95. Stay of decision pending appeal

96. Composition of Appeal Tribunal

97. Sitting of Appeal Tribunal

98. Procedure of Appeal Tribunal

99. Decision of Appeal Tribunal

100. Enforcement of decision of Appeal Tribunal

PART VIII

INSPECTION, COMPLAINT AND INVESTIGATION

101. Inspection of personal data system

102. Relevant data controller, etc., to be informed of result of inspection

103. Reports by Commissioner

104. Complaint

105. Investigation by Commissioner

106. Restriction on investigation initiated by complaint

107. Commissioner may carry out or continue investigation initiated by complaint notwithstanding withdrawal of complaint

108. Enforcement notice

109. Variation or cancellation of enforcement notice

PART IX

ENFORCEMENT

110. Authorized officers

111. Authority card

112. Power of investigation

113. Search and seizure with warrant

114. Search and seizure without warrant

115. Access to computerized data

Section

116. Warrant admissible notwithstanding defects
117. List of computer, book, account, etc., seized
118. Release of computer, book, account, etc., seized
119. No cost or damages arising from seizure to be recoverable
120. Obstruction to search
121. Power to require production of computer, book, account, etc.
122. Power to require attendance of persons acquainted with case
123. Examination of persons acquainted with case
124. Admission of statements in evidence
125. Forfeiture of computer, book, account, etc., seized
126. Joinder of offences
127. Power of arrest

PART X

MISCELLANEOUS

128. Register
129. Transfer of personal data to places outside Malaysia
130. Unlawful collecting, etc., of personal data
131. Abetment and attempt punishable as offences
132. Compounding of offences
133. Offences by body corporate
134. Prosecution
135. Jurisdiction to try offences
136. Service of notices or other documents
137. Public Authorities Protection Act 1948
138. Public servant
139. Protection against suit and legal proceedings
140. Protection of informers
141. Obligation of secrecy

Section

142. Things done in anticipation of the enactment of this Act

143. Power to make regulations

144. Prevention of anomalies

PART XI

SAVINGS AND TRANSITIONAL PROVISIONS

145. Personal data processed before the date of coming into operation of this Act

146. Registration of persons who process personal data before the date of coming into operation of this Act

LAWS OF MALAYSIA

Act 709

PERSONAL DATA PROTECTION ACT 2010

An Act to regulate the processing of personal data in commercial transactions and to provide for matters connected therewith and incidental thereto.

[*15 November 2013*, *P.U. (B) 464/2013*]

ENACTED by the Parliament of Malaysia as follows:

PART I

PRELIMINARY

Short title and commencement

1. (1) This Act may be cited as the Personal Data Protection Act 2010.

(2) This Act comes into operation on a date to be appointed by the Minister by notification in the *Gazette*, and the Minister may appoint different dates for different provisions of this Act.

Application

2. (1) This Act applies to—

(a) any person who processes; and

(b) any person who has control over or authorizes the processing of,

any personal data in respect of commercial transactions.

(2) Subject to subsection (1), this Act applies to a person in respect of personal data if—

(a) the person is established in Malaysia and the personal data is processed, whether or not in the context of that establishment, by that person or any other person employed or engaged by that establishment; or

(b) the person is not established in Malaysia, but uses equipment in Malaysia for processing the personal data otherwise than for the purposes of transit through Malaysia.

(3) A person falling within paragraph (2)*(b)* shall nominate for the purposes of this Act a representative established in Malaysia.

(4) For the purposes of subsections (2) and (3), each of the following is to be treated as established in Malaysia:

(a) an individual whose physical presence in Malaysia shall not be less than one hundred and eighty days in one calendar year;

(b) a body incorporated under the *Companies Act 1965 [*Act 125*];

(c) a partnership or other unincorporated association formed under any written laws in Malaysia; and

(d) any person who does not fall within paragraph *(a)*, *(b)* or *(c)* but maintains in Malaysia—

(i) an office, branch or agency through which he carries on any activity; or

(ii) a regular practice.

**NOTE*—The Companies Act 1965 [*Act 125*] has since been repealed by the Companies Act 2016 [*Act 777*] which comes into operation on 31 January 2017–*see* subsection 620(1) of Act 777.

Non-application

3. (1) This Act shall not apply to the Federal Government and State Governments.

(2) This Act shall not apply to any personal data processed outside Malaysia unless that personal data is intended to be further processed in Malaysia.

Interpretation

4. In this Act, unless the context otherwise requires—

"credit reporting agency" has the meaning assigned to it in the Credit Reporting Agencies Act 2010 [*Act 710*];

"this Act" includes regulations, orders, notifications and other subsidiary legislation made under this Act;

"register" means the Register of Data Controllers, Register of Data Controller Forums or Register of Codes of Practice;

"biometric data" means any personal data resulting from technical processing relating to the physical, physiological or behavioural characteristics of a person;

"personal data" means any information in respect of commercial transactions, which—

(a) is being processed wholly or partly by means of equipment operating automatically in response to instructions given for that purpose;

(b) is recorded with the intention that it should wholly or partly be processed by means of such equipment; or

(c) is recorded as part of a relevant filing system or with the intention that it should form part of a relevant filing system,

that relates directly or indirectly to a data subject, who is identified or identifiable from that information or from that and other information in the possession of a data controller, including any

sensitive personal data and expression of opinion about the data subject; but does not include any information that is processed for the purpose of a credit reporting business carried on by a credit reporting agency under the Credit Reporting Agencies Act 2010;

"sensitive personal data" means any personal data consisting of information as to the physical or mental health or condition of a data subject, his political opinions, his religious beliefs or other beliefs of a similar nature, the commission or alleged commission by him of any offence, biometric data or any other personal data as the Minister may determine by order published in the *Gazette*;

"prescribed" means prescribed by the Minister under this Act and where no mode is mentioned, means prescribed by order published in the *Gazette*;

"Advisory Committee" means the Personal Data Protection Advisory Committee established under section 70;

"vital interests" means matters relating to life, death or security of a data subject;

"Fund" means the Personal Data Protection Fund established under section 61;

"use", in relation to personal data, does not include the act of collecting or disclosing such personal data;

"collect", in relation to personal data, means an act by which such personal data enters into or comes under the control of a data controller;

"Minister" means the Minister charged with the responsibility for the protection of personal data;

"disclose", in relation to personal data, means an act by which such personal data is made available by a data controller;

"relevant person", in relation to a data subject, howsoever described, means—

(a) in the case of a data subject who is below the age of eighteen years, the parent, guardian or person who has parental responsibility for the data subject;

(b) in the case of a data subject who is incapable of managing his own affairs, a person who is appointed by a court to manage those affairs, or a person authorized in writing by the data subject to act on behalf of the data subject; or

(c) in any other case, a person authorized in writing by the data subject to make a data access request, data correction request, or both such requests, on behalf of the data subject;

"authorized officer" means any officer authorized in writing by the Commissioner under section 110;

"personal data breach" means any breach of personal data, loss of personal data, misuse of personal data or unauthorized access of personal data;

"correction", in relation to personal data, includes amendment, variation, modification or deletion;

"requestor", in relation to a data access request, data correction request or data portability request, means the data subject or the relevant person on behalf of the data subject, who has made the request;

"data processor", in relation to personal data, means any person, other than an employee of the data controller, who processes the personal data solely on behalf of the data controller, and does not process the personal data for any of his own purposes;

"processing", in relation to personal data, means collecting, recording, holding or storing the personal data or carrying out any operation or set of operations on the personal data, including—

(a) the organization, adaptation or alteration of personal data;

(b) the retrieval, consultation or use of personal data;

(c) the disclosure of personal data by transmission, transfer, dissemination or otherwise making available; or

(d) the alignment, combination, correction, erasure or destruction of personal data;

"registration" means the registration of a data controller under section 16;

"data controller" means a person who either alone or jointly or in common with other persons processes any personal data or has control over or authorizes the processing of any personal data, but does not include a data processor;

"relevant data controller", in relation to—

(a) an inspection, means the data controller who uses the personal data system which is the subject of the inspection;

(b) a complaint, means the data controller specified in the complaint;

(c) an investigation—

(i) in the case of an investigation initiated by a complaint, means the data controller specified in the complaint;

(ii) in any other case, means the data controller who is the subject of the investigation;

(d) an enforcement notice, means the data controller on whom the enforcement notice is served;

"credit reporting business" has the meaning assigned to it in the Credit Reporting Agencies Act 2010;

"Commissioner" means the Personal Data Protection Commissioner appointed under section 47;

"third party", in relation to personal data, means any person other than—

(a) a data subject;

(b) a relevant person in relation to a data subject;

(c) a data controller;

(d) a data processor; or

(e) a person authorized in writing by the data controller to process the personal data under the direct control of the data controller;

"relevant filing system" means any set of information relating to individuals to the extent that, although the information is not processed by means of equipment operating automatically in response to instructions given for that purpose, the set of information is structured, either by reference to individuals or by reference to criteria relating to individuals, in such a way that specific information relating to a particular individual is readily accessible;

"data subject" means an individual who is the subject of the personal data and shall not include a deceased individual;

"appointed date" means the relevant date or dates, as the case may be, on which this Act comes into operation;

"code of practice" means the personal data protection code of practice in respect of a specific class of data controllers registered by the Commissioner pursuant to section 23 or issued by the Commissioner under section 24;

"commercial transactions" means any transaction of a commercial nature, whether contractual or not, which includes any matters relating to the supply or exchange of goods or services, agency, investments, financing, banking and insurance, but does not include a credit reporting business carried out by a credit reporting agency under the Credit Reporting Agencies Act 2010.

PART II

PERSONAL DATA PROTECTION

Division 1

Personal Data Protection Principles

Personal Data Protection Principles

5. (1) The processing of personal data by a data controller shall be in compliance with the following Personal Data Protection Principles, namely:

(a) the General Principle;

(b) the Notice and Choice Principle;

(c) the Disclosure Principle;

(d) the Security Principle;

(e) the Retention Principle;

(f) the Data Integrity Principle; and

(g) the Access Principle,

as set out in sections 6, 7, 8, 9, 10, 11 and 12.

(1A) Where the processing of personal data is carried out by a data processor on behalf of the data controller, the data processor shall comply with the Security Principle as specified in section 9.

(2) Subject to sections 45 and 46, a data controller who contravenes subsection (1) or a data processor who contravenes subsection (1A) commits an offence and shall, on conviction, be liable to a fine not exceeding one million ringgit or to imprisonment for a term not exceeding three years or to both.

General Principle

6. (1) A data controller shall not—

(a) in the case of personal data other than sensitive personal data, process personal data about a data subject unless the data subject has given his consent to the processing of the personal data; or

(b) in the case of sensitive personal data, process sensitive personal data about a data subject except in accordance with the provisions of section 40.

(2) Notwithstanding paragraph (1)*(a)*, a data controller may process personal data about a data subject if the processing is necessary—

(a) for the performance of a contract to which the data subject is a party;

(b) for the taking of steps at the request of the data subject with a view to entering into a contract;

(c) for compliance with any legal obligation to which the data controller is the subject, other than an obligation imposed by a contract;

(d) in order to protect the vital interests of the data subject;

(e) for the administration of justice; or

(f) for the exercise of any functions conferred on any person by or under any law.

(3) Personal data shall not be processed unless—

(a) the personal data is processed for a lawful purpose directly related to an activity of the data controller;

(b) the processing of the personal data is necessary for or directly related to that purpose; and

(c) the personal data is adequate but not excessive in relation to that purpose.

Notice and Choice Principle

7. (1) A data controller shall by written notice inform a data subject—

(a) that personal data of the data subject is being processed by or on behalf of the data controller, and shall provide a description of the personal data to that data subject;

(b) the purposes for which the personal data is being or is to be collected and further processed;

(c) of any information available to the data controller as to the source of that personal data;

(d) of the data subject's right to request access to and to request correction of the personal data and how to contact the data controller with any inquiries or complaints in respect of the personal data;

(e) of the class of third parties to whom the data controller discloses or may disclose the personal data;

(f) of the choices and means the data controller offers the data subject for limiting the processing of personal data, including personal data relating to other persons who may be identified from that personal data;

(g) whether it is obligatory or voluntary for the data subject to supply the personal data; and

(h) where it is obligatory for the data subject to supply the personal data, the consequences for the data subject if he fails to supply the personal data.

(2) The notice under subsection (1) shall be given as soon as practicable by the data controller—

(a) when the data subject is first asked by the data controller to provide his personal data;

(b) when the data controller first collects the personal data of the data subject; or

(c) in any other case, before the data controller—

(i) uses the personal data of the data subject for a purpose other than the purpose for which the personal data was collected; or

(ii) discloses the personal data to a third party.

(3) A notice under subsection (1) shall be in the national and English languages, and the individual shall be provided with a clear and readily accessible means to exercise his choice, where necessary, in the national and English languages.

Disclosure Principle

8. Subject to section 39, no personal data shall, without the consent of the data subject, be disclosed—

(a) for any purpose other than—

(i) the purpose for which the personal data was to be disclosed at the time of collection of the personal data; or

(ii) a purpose directly related to the purpose referred to in subparagraph (i); or

(b) to any party other than a third party of the class of third parties as specified in paragraph 7(1)*(e)*.

Security Principle

9. (1) A data controller and a data processor shall, when processing personal data, take practical steps to protect the personal data from any loss, misuse, modification, unauthorized or accidental access or disclosure, alteration or destruction by having regard—

(a) to the nature of the personal data and the harm that would result from such loss, misuse, modification, unauthorized or accidental access or disclosure, alteration or destruction;

(b) to the place or location where the personal data is stored;

(c) to any security measures incorporated into any equipment in which the personal data is stored;

(d) to the measures taken for ensuring the reliability, integrity and competence of personnel having access to the personal data; and

(e) to the measures taken for ensuring the secure transfer of the personal data.

(2) Where processing of personal data is carried out by a data processor on behalf of a data controller, the data processor shall, for the purpose of protecting the personal data from any loss, misuse, modification, unauthorized or accidental access or disclosure, alteration or destruction—

(a) provide sufficient guarantees in respect of the technical and organizational security measures governing the processing to be carried out; and

(b) take reasonable steps to ensure compliance with those measures.

Retention Principle

10. (1) The personal data processed for any purpose shall not be kept longer than is necessary for the fulfilment of that purpose.

(2) It shall be the duty of a data controller to take all reasonable steps to ensure that all personal data is destroyed or permanently deleted if it is no longer required for the purpose for which it was to be processed.

Data Integrity Principle

11. A data controller shall take reasonable steps to ensure that the personal data is accurate, complete, not misleading and kept up-to-date by having regard to the purpose, including any directly related purpose, for which the personal data was collected and further processed.

Access Principle

12. A data subject shall be given access to his personal data held by a data controller and be able to correct that personal data where the personal data is inaccurate, incomplete, misleading or not up-to-date, except where compliance with a request to such access or correction is refused under this Act.

Division 1A

Accountability of personal data

Appointment of data protection officer

12A. (1) A data controller shall appoint one or more data protection officers who shall be accountable to the data controller for the compliance with this Act.

(2) Where the processing of personal data is carried out by a data processor on behalf of the data controller, the data processor shall appoint one or more data protection officers who shall be accountable to the data processor for the compliance with this Act.

(3) The data controller shall notify the Commissioner on the appointment of data protection officer in the manner and form as determined by the Commissioner.

(4) The appointment of data protection officer under subsections (1) and (2) shall not discharge the data controller or data processor from all duties and functions under this Act.

Data breach notification

12B. (1) Where a data controller has reason to believe that a personal data breach has occurred, the data controller shall, as soon as practicable, notify the Commissioner in the manner and form as determined by the Commissioner.

(2) Where the personal data breach under subsection (1) causes or likely to cause any significant harm to the data subject, the data controller shall notify the personal data breach to the data subject in the manner and form as determined by the Commissioner without unnecessary delay.

(3) A data controller who contravenes subsection (1) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred and fifty thousand ringgit or imprisonment for a term not exceeding two years or to both.

Division 2

Registration

Application of this Division

13. (1) This Division shall apply to a data controller who belongs to a class of data controllers as specified in the order made under subsection 14(1).

(2) A data controller who belongs to a class of data controllers not specified in the order made under subsection 14(1) shall comply with all the provisions of this Act other than the provisions of this Division relating to the registration of data controllers and matters connected thereto.

Registration of data controllers

14. (1) The Minister may, upon the recommendation of the Commissioner, by order published in the *Gazette*, specify a class of data controllers who shall be required to be registered as data controllers under this Act.

(2) The Commissioner shall, before making his recommendation under subsection (1), consult with—

(a) such bodies representative of data controllers belonging to that class; or

(b) such other interested persons.

Application for registration

15. (1) A person who belongs to the class of data controllers as specified in the order made under subsection 14(1) shall submit an application for registration to the Commissioner in the manner and form as determined by the Commissioner.

(2) Every application for registration shall be accompanied with the prescribed registration fee and such documents as may be required by the Commissioner.

(3) The Commissioner may in writing at any time after receiving the application and before it is determined, require the applicant to provide such additional documents or information within the time as specified by the Commissioner.

(4) If the requirement under subsection (3) is not complied with, the application for registration shall be deemed to have been withdrawn by the applicant and shall not be further proceeded with by the Commissioner, but without prejudice to a fresh application being made by the applicant.

Certificate of registration

16. (1) After having given due consideration to an application under subsection 15(1), the Commissioner may—

(a) register the applicant and issue a certificate of registration to the applicant in such form as determined by the Commissioner; or

(b) refuse the application.

(2) The certificate of registration may be issued subject to such conditions or restrictions as the Commissioner may think fit to impose.

(3) Where the Commissioner refuses the application for registration in pursuance of subsection (1), he shall inform the applicant by a written notice that the application has been refused and the reasons for the refusal.

(4) A person who belongs to the class of data controllers as specified in the order made under subsection 14(1) and who processes personal data without a certificate of registration issued in pursuance of paragraph 16(1)*(a)* commits an offence and shall, on conviction, be liable to a fine not exceeding five hundred thousand ringgit or to imprisonment for a term not exceeding three years or to both.

Renewal of certificate of registration

17. (1) A data controller may make an application for the renewal of the certificate of registration not later than ninety days before the date of expiry of the certificate of registration in the manner and form as determined by the Commissioner and the application shall be accompanied with the prescribed renewal fee and such documents as may be required by the Commissioner, but no application for renewal shall be allowed where the application is made after the date of expiry of the certificate of registration.

(2) When renewing a certificate of registration, the Commissioner may vary the conditions or restrictions imposed upon the issuance of the certificate of registration or impose additional conditions or restrictions.

(3) The Commissioner may refuse to renew a certificate of registration—

(a) if the data controller has failed to comply with any of the provisions of this Act;

(b) if the data controller has failed to comply with any conditions or restrictions imposed upon the issuance of the certificate of registration; or

(c) if he is satisfied that the data controller is unable to continue the processing of personal data in accordance with this Act.

Revocation of registration

18. (1) The Commissioner may revoke the registration of a data controller if the Commissioner is satisfied that—

(a) the data controller has failed to comply with any of the provisions of this Act;

(b) the data controller has failed to comply with any conditions or restrictions imposed upon the issuance of the certificate of registration;

(c) the issuance of the certificate of registration was induced by a false representation of fact by the data controller; or

(d) the data controller has ceased to carry on the processing of personal data.

(2) Notwithstanding subsection (1), the Commissioner shall not revoke the registration of a data controller unless the Commissioner is satisfied that, after giving the data controller an opportunity of making any representation in writing he may wish to make, the registration should be revoked.

(3) Where the registration of the data controller is revoked, the Commissioner shall issue a notice of revocation of registration to the data controller, and the certificate of registration issued in respect of such registration shall have no effect upon service of the notice of revocation of registration.

(4) A data controller whose registration has been revoked under this section and who continues to process personal data thereafter commits an offence and shall, on conviction, be liable to a fine not exceeding five hundred thousand ringgit or to imprisonment for a term not exceeding three years or to both.

Surrender of certificate of registration

19. (1) Where the certificate of registration is revoked in pursuance of section 18, the holder of the certificate shall, within seven days from the date of service of the notice of revocation of registration, surrender the certificate to the Commissioner.

(2) A person who fails to comply with subsection (1) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

Register of Data Controllers

20. (1) The Commissioner shall maintain a Register of Data Controllers in accordance with section 128.

(2) The Register of Data Controllers shall contain the names of data controllers who have been registered in pursuance of this Division and any other particulars regarding such data controllers as may be determined by the Commissioner.

Division 3

Data controller forum and code of practice

Data controller forum

21. (1) The Commissioner may designate a body or a data controller as a data controller forum in respect of a specific class of data controllers for the purposes of this Act by notifying that body or data controller in writing, if the Commissioner is satisfied that—

(a) the membership of the body or data controller is open to all data controllers of that class;

(b) the body or data controller is capable of performing as required under the relevant provisions of this Act; and

(c) the body or data controller has a written constitution.

(2) The body or data controller shall agree in writing to be a data controller forum before the designation is registered by the Commissioner in the Register of Data Controller Forums.

(3) The Commissioner may decide that an existing body or a data controller that was previously designated as a data controller forum under subsection (1) is no longer a data controller forum for the purposes of this Act, if he is satisfied that the body or data controller no longer meets the requirements as set out in that subsection.

(4) Where the Commissioner decides that an existing body or a data controller which has been designated as a data controller forum is no longer a data controller forum for the purposes of this Act, he shall withdraw the designation and subsequently cancel the registration of the designation in the Register of Data Controller Forums.

(5) A designation or withdrawal of designation under this section shall take effect from the date of registration of the designation or the date of cancellation of the registration of the designation, as the case may be, or such later date as specified by the Commissioner.

Register of Data Controller Forums

22. (1) The Commissioner shall maintain a Register of Data Controller Forums in accordance with section 128.

(2) The Register of Data Controller Forums shall contain the names of data controller forums which have been designated and registered in pursuance of this Division and any other particulars regarding such data controller forums as may be determined by the Commissioner.

Code of practice

23. (1) A data controller forum may prepare a code of practice—

(a) on its own initiative; or

(b) upon request by the Commissioner.

(2) The data controller forum shall, in preparing a code of practice under subsection (1), consider matters including—

(a) the purpose for the processing of personal data by the data controller or class of data controllers;

(b) the views of the data subjects or groups representing data subjects;

(c) the views of the relevant regulatory authority, if any, to which the data controller is subject to; and

(d) that the code of practice, upon having regard to all of the matters in paragraphs *(a)*, *(b)* and *(c)* and any other matters, offers an adequate level of protection for the personal data of the data subjects concerned.

(3) The Commissioner may register the code of practice prepared pursuant to subsection (1), if the Commissioner is satisfied that—

(a) the code of practice is consistent with the provisions of this Act; and

(b) the matters as set out in subsection (2) have been given due consideration.

(4) The code of practice under subsection (1) shall take effect on the date of registration of the code of practice by the Commissioner in the Register of Codes of Practice.

(5) If the Commissioner refuses to register the code of practice, the Commissioner shall notify the relevant data controller forum of his decision in writing and provide the reasons for it.

(6) If the Commissioner neither registers nor refuses to register a code of practice within thirty days from the date of receipt of the code of practice by him for registration, he shall be deemed to have refused the registration of the code of practice.

(7) The Commissioner may register different codes of practice for different classes of data controllers.

(8) The Commissioner and data controller shall make available to the public any code of practice registered under subsection (3).

Commissioner may issue code of practice

24. (1) The Commissioner may issue a code of practice, if—

(a) a code of practice is not prepared under paragraph 23(1)*(a)*;

(b) the Commissioner is satisfied that a code of practice for a specific class of data controllers is unlikely to be prepared by the relevant data controller forum within the period as specified by the Commissioner; or

(c) there is no data controller forum to develop the relevant code of practice for the class of data controllers.

(2) The Commissioner shall, before issuing a code of practice under subsection (1), consider matters including—

(a) the purpose for the processing of personal data by the data controller or class of data controllers;

(b) the views of the data controllers or groups representing data controllers, to which the code of practice is applicable;

(c) the views of the data subjects or groups representing data subjects;

(d) the views of the relevant regulatory authority, if any, to which the data controller is subject to; and

(e) that the code of practice, upon having regard to all of the matters in paragraphs *(a)*, *(b)* and *(c)* and any other matters, offers an adequate level of protection for the personal data of the data subjects concerned.

(3) The Commissioner may issue different codes of practice for different classes of data controllers.

(4) The code of practice issued by the Commissioner under subsection (1) shall be registered in the Register of Codes of Practice.

(5) The code of practice under subsection (1) shall take effect on the date of registration of the code of practice by the Commissioner.

(6) The Commissioner shall make available to the public any code of practice issued by him under subsection (1).

Applicable code of practice

25. (1) The Commissioner shall ensure that there is only one code of practice registered for a class of data controllers at a given time.

(2) All data controllers belonging to a class of data controllers shall comply with the relevant registered code of practice that is applicable to that class of data controllers at a given time.

(3) Where a code of practice is registered by the Commissioner under section 23 or 24, the Commissioner shall notify, in such manner as he may determine, the relevant class of data controllers to whom the code of practice is applicable—

(a) of the identity of the code of practice concerned and the date on which the code of practice is to take effect; and

(b) of the specific requirements under this Act for which the code of practice is issued and registered.

(4) If there is any uncertainty or ambiguity as to which code of practice is applicable to a particular data controller or class of data controllers, the data controller or person concerned may apply to the Commissioner for his opinion on which code of practice is the applicable code of practice in relation to the circumstances of such data controller or person.

(5) The Commissioner shall provide his opinion within thirty days from the date of receipt of an application made under subsection (4).

(6) The Commissioner shall, when making his opinion under subsection (5), take into account any relevant previous opinions, if any.

(7) The Commissioner may withdraw an opinion made under this section if the Commissioner is satisfied that the nature of the activity engaged by the data controller has changed materially.

Revocation, etc., of code of practice

26. (1) The Commissioner may revoke, amend or revise, whether in whole or in part, any code of practice registered under this Act—

(a) on his own accord; or

(b) upon an application by the data controller forum or such bodies representing the data controllers.

(2) The Commissioner shall, before revoking, amending or revising a code of practice under subsection (1), consult with—

(a) such data controllers or bodies representative of data controllers to which the code of practice shall apply, whether in whole or in part; and

(b) such other interested persons,

as the Commissioner thinks fit.

(3) Where any code of practice has been revoked, amended or revised under subsection (1), the Commissioner—

(a) shall enter the particulars of such revocation, amendment or revision in the Register of Codes of Practice; and

(b) shall notify the relevant data controller forum, class of data controllers, data controllers and the public of such revocation, amendment or revision in such manner as may be determined by him.

(4) The Commissioner shall make available to the public any code of practice as amended or revised by him under this section.

Submission of new code of practice by data controller forum

27. (1) A data controller forum may submit a new code of practice to replace an existing code of practice.

(2) The new code of practice submitted in pursuance of subsection (1) shall be subject to the provisions of this Division.

Register of Codes of Practice

28. (1) The Commissioner shall maintain a Register of Codes of Practice in accordance with section 128.

(2) The Register of Codes of Practice shall contain—

(a) particulars of codes of practice registered under section 23 or 24 and any revocation, amendment or revision to such codes of practice under section 26; and

(b) any opinion made by the Commissioner under section 25, including particulars of withdrawal of previous opinions.

Non-compliance with code of practice

29. A data controller who fails to comply with any provision of the code of practice that is applicable to the data controller commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding one year or to both.

Division 4

Rights of data subject

Right of access to personal data

30. (1) An individual is entitled to be informed by a data controller whether personal data of which that individual is the data subject is being processed by or on behalf of the data controller.

(2) A requestor may, upon payment of a prescribed fee, make a data access request in writing to the data controller—

(a) for information of the data subject's personal data that is being processed by or on behalf of the data controller; and

(b) to have communicated to him a copy of the personal data in an intelligible form.

(3) A data access request for any information under subsection (2) shall be treated as a single request, and a data access request for information under paragraph (2)*(a)* shall, in the absence of any indication to the contrary, be treated as extending also to such request under paragraph (2)*(b)*.

(4) In the case of a data controller having separate entries in respect of personal data held for different purposes, a separate data access request shall be made for each separate entry.

(5) Where a data controller does not hold the personal data, but controls the processing of the personal data in such a way as to prohibit the data controller who holds the personal data from complying, whether in whole or part, with the data access request under subsection (2) which relates to the personal data, the first-mentioned data controller shall be deemed to hold the personal data and the provisions of this Act shall be construed accordingly.

Compliance with data access request

31. (1) Subject to subsection (2) and section 32, a data controller shall comply with a data access request under section 30 not later than twenty-one days from the date of receipt of the data access request.

(2) A data controller who is unable to comply with a data access request within the period specified in subsection (1) shall before the expiration of that period—

(a) by notice in writing inform the requestor that he is unable to comply with the data access request within such period and the reasons why he is unable to do so; and

(b) comply with the data access request to the extent that he is able to do so.

(3) Notwithstanding subsection (2), the data controller shall comply in whole with the data access request not later than fourteen days after the expiration of the period stipulated in subsection (1).

Circumstances where data controller may refuse to comply with data access request

32. (1) A data controller may refuse to comply with a data access request under section 30 if—

(a) the data controller is not supplied with such information as he may reasonably require—

(i) in order to satisfy himself as to the identity of the requestor; or

(ii) where the requestor claims to be a relevant person, in order to satisfy himself—

(A) as to the identity of the data subject in relation to whom the requestor claims to be the relevant person; and

(B) that the requestor is the relevant person in relation to the data subject;

(b) the data controller is not supplied with such information as he may reasonably require to locate the personal data to which the data access request relates;

(c) the burden or expense of providing access is disproportionate to the risks to the data subject's privacy in relation to the personal data in the case in question;

(d) the data controller cannot comply with the data access request without disclosing personal data relating to another individual who can be identified from that information, unless—

(i) that other individual has consented to the disclosure of the information to the requestor; or

(ii) it is reasonable in all the circumstances to comply with the data access request without the consent of the other individual;

(e) subject to subsection (3), any other data controller controls the processing of the personal data to which the data access request relates in such a way as to prohibit the first-mentioned data controller from complying, whether in whole or in part, with the data access request;

(f) providing access would constitute a violation of an order of a court;

(g) providing access would disclose confidential commercial information; or

(h) such access to personal data is regulated by another law.

(2) In determining for the purposes of subparagraph (1)*(d)*(ii) whether it is reasonable in all the circumstances to comply with the data access request without the consent of the other individual, regard shall be had, in particular, to—

(a) any duty of confidentiality owed to the other individual;

(b) any steps taken by the data controller with a view to seeking the consent of the other individual;

(c) whether the other individual is capable of giving consent; and

(d) any express refusal of consent by the other individual.

(3) Paragraph (1)*(e)* shall not operate so as to excuse the data controller from complying with the data access request under subsection 30(2) to any extent that the data controller can comply with the data access request without contravening the prohibition concerned.

Notification of refusal to comply with data access request

33. Where a data controller who pursuant to section 32 refuses to comply with a data access request under section 30, he shall, not later than twenty-one days from the date of receipt of the data access request, by notice in writing, inform the requestor—

(a) of the refusal and the reasons for the refusal; and

(b) where paragraph 32(1)*(e)* is applicable, of the name and address of the other data controller concerned.

Right to correct personal data

34. (1) Where—

(a) a copy of the personal data has been supplied by the data controller in compliance with the data access request under section 30 and the requestor considers that the personal data is inaccurate, incomplete, misleading or not up-to-date; or

(b) the data subject knows that his personal data being held by the data controller is inaccurate, incomplete, misleading or not up-to-date,

the requestor or data subject, as the case may be, may make a data correction request in writing to the data controller that the data controller makes the necessary correction to the personal data.

(2) Where a data controller does not hold the personal data, but controls the processing of the personal data in such a way as to prohibit the data controller who holds the personal data from complying, whether in whole or in part, with the data correction request under subsection (1) which relates to the personal data, the first-mentioned data controller shall be deemed to be the data controller to whom such a request may be made and the provisions of this Act shall be construed accordingly.

Compliance with data correction request

35. (1) Subject to subsections (2), (3) and (5) and section 36, where a data controller is satisfied that the personal data to which a data correction request relates is inaccurate, incomplete, misleading or not up-to-date, he shall, not later than twenty-one days from the date of receipt of the data correction request—

(a) make the necessary correction to the personal data;

(b) supply the requestor with a copy of the personal data as corrected; and

(c) subject to subsection (4), where—

(i) the personal data has been disclosed to a third party during the twelve months immediately preceding the day on which the correction is made; and

(ii) the data controller has no reason to believe that the third party has ceased using the personal data for the purpose, including any directly related purpose, for which the personal data was disclosed to the third party,

take all practicable steps to supply the third party with a copy of the personal data as so corrected accompanied by a notice in writing stating the reasons for the correction.

(2) A data controller who is unable to comply with a data correction request within the period specified in subsection (1) shall before the expiration of that period—

(a) by notice in writing inform the requestor that he is unable to comply with the data correction request within such period and the reasons why he is unable to do so; and

(b) comply with the data correction request to the extent that he is able to do so.

(3) Notwithstanding subsection (2), the data controller shall comply in whole with the data correction request not later than fourteen days after the expiration of the period stipulated in subsection (1).

(4) A data controller is not required to comply with paragraph (1)*(c)* in any case where the disclosure of the personal data to a third party consists of the third party's own inspection of a register—

(a) in which the personal data is entered or otherwise recorded; and

(b) which is available for inspection by the public.

(5) Where a data controller is requested to correct personal data under subsection 34(1) and the personal data is being processed by another data controller that is in a better position to respond to the data correction request—

(a) the first-mentioned data controller shall immediately transfer the data correction request to such data controller, and notify the requestor of this fact; and

(b) sections 34, 35, 36 and 37 shall apply as if the references therein to a data controller were references to such other data controller.

Circumstances where data controller may refuse to comply with data correction request

36. (1) A data controller may refuse to comply with a data correction request under section 34 if—

(a) the data controller is not supplied with such information as he may reasonably require—

(i) in order to satisfy himself as to the identity of the requestor; or

(ii) where the requestor claims to be a relevant person, in order to satisfy himself—

(A) as to the identity of the data subject in relation to whom the requestor claims to be the relevant person; and

(B) that the requestor is the relevant person in relation to the data subject;

(b) the data controller is not supplied with such information as he may reasonably require to ascertain in what way the personal data to which the data correction request relates is inaccurate, incomplete, misleading or not up-to-date;

(c) the data controller is not satisfied that the personal data to which the data correction request relates is inaccurate, incomplete, misleading or not up-to-date;

(d) the data controller is not satisfied that the correction which is the subject of the data correction request is accurate, complete, not misleading or up-to-date; or

(e) subject to subsection (2), any other data controller controls the processing of the personal data to which the data correction request relates in such a way as to prohibit the first-mentioned data controller from complying, whether in whole or in part, with the data correction request.

(2) Paragraph (1)*(e)* shall not operate so as to excuse the data controller from complying with subsection 35(1) in relation to the data correction request to any extent that the data controller can comply with that subsection without contravening the prohibition concerned.

Notification of refusal to comply with data correction request

37. (1) Where a data controller who pursuant to section 36 refuses to comply with a data correction request under section 34, he shall, not later than twenty-one days from the date of receipt of the data correction request, by notice in writing, inform the requestor—

(a) of the refusal and the reasons for the refusal; and

(b) where paragraph 36(1)*(e)* is applicable, of the name and address of the other data controller concerned.

(2) Without prejudice to the generality of subsection (1), where personal data to which the data correction request relates is an expression of opinion and the data controller is not satisfied that the expression of opinion is inaccurate, incomplete, misleading or not up-to-date, the data controller shall—

(a) make a note, whether annexed to the personal data or elsewhere—

(i) of the matters in respect of which the expression of opinion is considered by the requestor to be inaccurate, incomplete, misleading or not up-to-date; and

(ii) in such a way that the personal data cannot be used by any person without the note being drawn to the attention of and being available for inspection by that person; and

(b) attach a copy of the note to the notice referred to in subsection (1) which relates to the data correction request.

(3) In this section, "expression of opinion" includes an assertion of fact which is unverifiable or in all circumstances of the case is not practicable to verify.

(4) A data controller who contravenes subsection (2) commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding one year or to both.

Withdrawal of consent to process personal data

38. (1) A data subject may by notice in writing withdraw his consent to the processing of personal data in respect of which he is the data subject.

(2) The data controller shall, upon receiving the notice under subsection (1), cease the processing of the personal data.

(3) The failure of the data subject to exercise the right conferred by subsection (1) does not affect any other rights conferred on him by this Part.

(4) A data controller who contravenes subsection (2) commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding one year or to both.

Extent of disclosure of personal data

39. Notwithstanding section 8, personal data of a data subject may be disclosed by a data controller for any purpose other than the purpose for which the personal data was to be disclosed at the time of its collection or any other purpose directly related to that purpose, only under the following circumstances:

(a) the data subject has given his consent to the disclosure;

(b) the disclosure—

(i) is necessary for the purpose of preventing or detecting a crime, or for the purpose of investigations; or

(ii) was required or authorized by or under any law or by the order of a court;

(c) the data controller acted in the reasonable belief that he had in law the right to disclose the personal data to the other person;

(d) the data controller acted in the reasonable belief that he would have had the consent of the data subject if the data subject had known of the disclosing of the personal data and the circumstances of such disclosure; or

(e) the disclosure was justified as being in the public interest in circumstances as determined by the Minister.

Processing of sensitive personal data

40. (1) Subject to subsection (2) and section 5, a data controller shall not process any sensitive personal data of a data subject except in accordance with the following conditions:

(a) the data subject has given his explicit consent to the processing of the personal data;

(b) the processing is necessary—

(i) for the purposes of exercising or performing any right or obligation which is conferred or imposed by law on the data controller in connection with employment;

(ii) in order to protect the vital interests of the data subject or another person, in a case where—

(A) consent cannot be given by or on behalf of the data subject; or

(B) the data controller cannot reasonably be expected to obtain the consent of the data subject;

(iii) in order to protect the vital interests of another person, in a case where consent by or on behalf of the data subject has been unreasonably withheld;

(iv) for medical purposes and is undertaken by—

(A) a healthcare professional; or

(B) a person who in the circumstances owes a duty of confidentiality which is equivalent to that which would arise if that person were a healthcare professional;

(v) for the purpose of, or in connection with, any legal proceedings;

(vi) for the purpose of obtaining legal advice;

(vii) for the purposes of establishing, exercising or defending legal rights;

(viii) for the administration of justice;

(ix) for the exercise of any functions conferred on any person by or under any written law; or

(x) for any other purposes as the Minister thinks fit; or

(c) the information contained in the personal data has been made public as a result of steps deliberately taken by the data subject.

(2) The Minister may by order published in the *Gazette* exclude the application of subparagraph (1)*(b)*(i), (viii) or (ix) in such cases as may be specified in the order, or provide that, in such cases as may be specified in the order, the condition in subparagraph (1)*(b)*(i), (viii) or (ix) is not to be regarded as satisfied unless such further conditions as may be specified in the order are also satisfied.

(3) A person who contravenes subsection (1) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

(4) For the purposes of this section—

"medical purposes" includes the purposes of preventive medicine, medical diagnosis, medical research, rehabilitation and the provision of care and treatment and the management of healthcare services;

"healthcare services" has the meaning assigned to it in the Private Healthcare Facilities and Services Act 1998 [*Act 586*];

"healthcare professional" means a medical practitioner, dental practitioner, pharmacist, clinical psychologist, nurse, midwife, medical assistant, physiotherapist, occupational therapist and other allied healthcare professionals and any other person involved in the giving of medical, health, dental, pharmaceutical and any other healthcare services under the jurisdiction of the Ministry of Health.

Repeated collection of personal data in same circumstances

41. (1) Where a data controller—

(a) has complied with the provisions of the Notice and Choice Principle under section 7 in respect of the collection of personal data from the data subject, referred to as the "first collection"; and

(b) on any subsequent occasion again collects personal data from that data subject, referred to as the "subsequent collection",

the data controller is not required to comply with the provisions of the Notice and Choice Principle in respect of the subsequent collection if—

(A) to comply with those provisions in respect of that subsequent collection would be to repeat, in the same circumstances, what was done to comply with that principle in respect of the first collection; and

(B) not more than twelve months have elapsed between the first collection and the subsequent collection.

(2) For the avoidance of doubt, it is declared that subsection (1) shall not operate to prevent a subsequent collection from becoming a first collection if the data controller concerned has complied with the provisions of the Notice and Choice Principle in respect of the subsequent collection.

Right to prevent processing likely to cause damage or distress

42. (1) Subject to subsection (2), a data subject may, at any time by notice in writing to a data controller, referred to as the "data subject notice", require the data controller at the end of such period as is reasonable in the circumstances, to—

(a) cease the processing of or processing for a specified purpose or in a specified manner; or

(b) not begin the processing of or processing for a specified purpose or in a specified manner,

any personal data in respect of which he is the data subject if, based on reasons to be stated by him—

(A) the processing of that personal data or the processing of personal data for that purpose or in that manner is causing or is likely to cause substantial damage or substantial distress to him or to another person; and

(B) the damage or distress is or would be unwarranted.

(2) Subsection (1) shall not apply where—

(a) the data subject has given his consent;

(b) the processing of personal data is necessary—

(i) for the performance of a contract to which the data subject is a party;

(ii) for the taking of steps at the request of the data subject with a view to entering a contract;

(iii) for compliance with any legal obligation to which the data controller is the subject, other than an obligation imposed by contract; or

(iv) in order to protect the vital interests of the data subject; or

(c) in such other cases as may be prescribed by the Minister by order published in the *Gazette*.

(3) The data controller shall, within twenty-one days from the date of receipt of the data subject notice under subsection (1), give the data subject a written notice—

(a) stating that he has complied or intends to comply with the data subject notice; or

(b) stating his reasons for regarding the data subject notice as unjustified, or to any extent unjustified, and the extent, if any, to which he has complied or intends to comply with it.

(4) Where the data subject is dissatisfied with the failure of the data controller to comply with the data subject notice, whether in whole or in part, under paragraph (3)*(b)*, the data subject may submit an application to the Commissioner to require the data controller to comply with the data subject notice.

(5) Where the Commissioner is satisfied that the application of the data subject under subsection (4) is justified or justified to any extent, the Commissioner may require the data controller to take such steps for complying with the data subject notice.

(6) A data controller who fails to comply with the requirement of the Commissioner under subsection (5) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

Right to prevent processing for purposes of direct marketing

43. (1) A data subject may, at any time by notice in writing to a data controller, require the data controller at the end of such period as is reasonable in the circumstances to cease or not to begin processing his personal data for purposes of direct marketing.

(2) Where the data subject is dissatisfied with the failure of the data controller to comply with the notice, whether in whole or in part, under subsection (1), the data subject may submit an application to the Commissioner to require the data controller to comply with the notice.

(3) Where the Commissioner is satisfied that the application of the data subject under subsection (2) is justified or justified to any extent, the Commissioner may require the data controller to take such steps for complying with the notice.

(4) A data controller who fails to comply with the requirement of the Commissioner under subsection (3) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

(5) For the purposes of this section, "direct marketing" means the communication by whatever means of any advertising or marketing material which is directed to particular individuals.

Rights to data portability

43A. (1) Subject to subsection (2), a data subject may request the data controller to transmit his personal data to another data controller of his choice directly by giving a notice in writing by way of electronic means to the data controller.

(2) The request for data portability referred to in subsection (1) is subject to technical feasibility and compatibility of the data format.

(3) Upon receiving the request for data portability under subsection (1), the data controller shall complete the transmission of personal data within the period as may be prescribed.

Record to be kept by data controller

44. (1) A data controller shall keep and maintain a record of any application, notice, request or any other information relating to personal data that has been or is being processed by him.

(2) The Commissioner may determine the manner and form in which the record is to be maintained.

PART III

EXEMPTION

Exemption

45. (1) There shall be exempted from the provisions of this Act personal data processed by an individual only for the purposes of that individual's personal, family or household affairs, including recreational purposes.

(2) Subject to section 46, personal data—

(a) processed for—

(i) the prevention or detection of crime or for the purpose of investigations;

(ii) the apprehension or prosecution of offenders; or

(iii) the assessment or collection of any tax or duty or any other imposition of a similar nature,

shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act;

(b) processed in relation to information of the physical or mental health of a data subject shall be exempted from the Access Principle and other related provisions of this Act of which the application of the provisions to the data subject would be likely to cause serious harm to the physical or mental health of the data subject or any other individual;

(c) processed for preparing statistics or carrying out research shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act, provided that such personal data is not processed for any other purpose and that the resulting statistics or the results of the research are not made available in a form which identifies the data subject;

(d) that is necessary for the purpose of or in connection with any order or judgement of a court shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act;

(e) processed for the purpose of discharging regulatory functions shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act if the application of those provisions to the personal data would be likely to prejudice the proper discharge of those functions; or

(f) processed only for journalistic, literary or artistic purposes shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle, Retention Principle, Data Integrity Principle and Access Principle and other related provisions of this Act, provided that—

(i) the processing is undertaken with a view to the publication by any person of the journalistic, literary or artistic material;

(ii) the data controller reasonably believes that, taking into account the special importance of public interest in freedom of expression, the publication would be in the public interest; and

(iii) the data controller reasonably believes that in all the circumstances, compliance with the provision in respect of which the exemption is claimed is incompatible with the journalistic, literary or artistic purposes.

Power to make further exemptions

46. (1) The Minister may, upon the recommendation of the Commissioner, by order published in the *Gazette* exempt—

(a) the application of any of the Personal Data Protection Principles under this Act to any data controller or class of data controllers; or

(b) any data controller or class of data controllers from all or any of the provisions of this Act.

(2) The Minister may impose any terms or conditions as he thinks fit in respect of any exemption made under subsection (1).

(3) The Minister may at any time, on the recommendation of the Commissioner, by order published in the *Gazette*, revoke any order made under subsection (1).

PART IV

APPOINTMENT, FUNCTIONS AND POWERS OF COMMISSIONER

Appointment of Commissioner

47. (1) The Minister shall appoint any person as the "Personal Data Protection Commissioner" for the purposes of carrying out the functions and powers assigned to the Commissioner under this Act on such terms and conditions as he thinks desirable.

(2) The appointment of the Commissioner shall be published in the *Gazette*.

(3) The Commissioner appointed under subsection (1) shall be a body corporate having perpetual succession and a common seal.

(4) The Commissioner may sue and be sued in his corporate name.

Functions of Commissioner

48. The Commissioner shall have the following functions:

(a) to advise the Minister on the national policy for personal data protection and all other related matters;

(b) to implement and enforce the personal data protection laws, including the formulation of operational policies and procedures;

(c) to promote and encourage associations or bodies representing data controllers to prepare codes of practice and to disseminate to their members the codes of practice for the purposes of this Act;

(d) to cooperate with bodies corporate or government agencies for the purpose of performing his functions;

(e) (*Deleted by Act A1727*);

(f) to undertake or cause to be undertaken research into and monitor developments in the processing of personal data, including technology, in order to take account any effects such developments may have on the privacy of individuals in relation to their personal data;

(g) to monitor and supervise compliance with the provisions of this Act, including the issuance of circulars, enforcement notices or any other instruments to any person;

(h) to promote awareness and dissemination of information to the public about the operation of this Act;

(i) to liaise and cooperate with persons performing similar personal data protection functions in any place outside Malaysia in respect of matters of mutual interest, including matters concerning the privacy of individuals in relation to their personal data;

(j) to represent Malaysia through participation in events that relate to personal data protection as authorized by the Minister, whether within or outside Malaysia; and

(k) to carry out such activities and do such things as are necessary, advantageous and proper for the administration of this Act, or such other purposes consistent with this Act as may be directed by the Minister.

Powers of Commissioner

49. (1) The Commissioner shall have all such powers to do all things necessary or expedient for or in connection with the performance of his functions under this Act.

(2) Without prejudice to the generality of subsection (1), the powers of the Commissioner shall include the power—

(a) to collect such fees as may be prescribed by the Minister;

(b) to appoint such agents, experts, consultants or any other persons as he thinks fit to assist him in the performance of his functions;

(c) to formulate human resource development and cooperation programmes for the proper and effective performance of his functions;

(d) to enter into contracts;

(e) to acquire, purchase, take, hold and enjoy any movable or immovable property of every description for the performance of his functions, and to convey, assign, surrender, yield up, charge, mortgage, demise, transfer or otherwise dispose of, or deal with such property or any interest therein vested in him;

(f) to perform such other functions as the Minister may assign from time to time; and

(g) to do all such things as may be incidental to or consequential upon the performance of his functions.

Appointment of Deputy Commissioners and Assistant Commissioners

50. (1) The Commissioner may, with the approval of the Minister, from time to time, appoint such number of public officers as Deputy Commissioners and such number of persons as Assistant Commissioners as are necessary to assist the Commissioner in the performance of his functions and the exercise of his powers under this Act.

(2) The Deputy Commissioners and Assistant Commissioners appointed under subsection (1) shall hold office for such periods, receive such remuneration, allowances or benefits, and shall be subject to such terms and conditions of service as the Commissioner, with the approval of the Minister, may determine.

(3) The Deputy Commissioners and Assistant Commissioners appointed under subsection (1) shall be subject to the supervision, direction and control of the Commissioner.

Appointment of other officers and servants

51. The Commissioner may employ on such terms and conditions as he thinks desirable such officers and servants as may be necessary to assist him in the performance of his functions and the exercise of his powers under this Act.

Loans and advances to officers and servants

52. The Commissioner may grant loans and advances to the officers and servants under section 51 for such purposes and on such terms and conditions as the Commissioner may determine.

Tenure of office

53. Subject to such conditions as may be specified in his instrument of appointment, the Commissioner shall, unless he sooner resigns or vacates his office or his appointment is sooner revoked, hold office for a term not exceeding three years and may be eligible for reappointment.

Revocation of appointment and resignation

54. (1) The Minister may at any time revoke the appointment of the Commissioner and shall state the reason for such revocation.

(2) The Commissioner may at any time resign his office by giving a written notice addressed to the Minister fourteen days prior to the intended date of resignation.

Temporary exercise of functions and powers of Commissioner

55. (1) The Minister may temporarily appoint a Deputy Commissioner to perform the functions and powers of the Commissioner for the period when—

(a) the Commissioner is by reason of illness, leave of absence or any other cause unable to perform his functions for any substantial period; or

(b) the office of the Commissioner is vacant.

(2) A person appointed under subsection (1) shall, during the period in which he is performing the functions and exercising the powers of the Commissioner under this section, be deemed to be the Commissioner.

Vacation of office

56. The office of the Commissioner shall be vacated—

(a) if he dies;

(b) if there has been proved against him, or he has been convicted of, a charge in respect of—

(i) an offence involving fraud, dishonesty or moral turpitude;

(ii) an offence under any law relating to corruption; or

(iii) any other offence punishable with imprisonment (in itself only or in addition to or in lieu of a fine) for more than two years;

(c) if his conduct, whether in connection with his duties as a Commissioner or otherwise, has been such as to bring discredit on the office of the Commissioner;

(d) if he becomes bankrupt;

(e) if he is of unsound mind or is otherwise incapable of discharging his duties;

(f) if his appointment is revoked by the Minister; or

(g) if his resignation is accepted by the Minister.

Remuneration and allowances

57. The Commissioner shall be paid such remuneration and allowances as the Minister may determine after consultation with the Minister of Finance.

Delegation of Commissioner's functions and powers

58. (1) The Commissioner may, subject to such conditions, limitations or restrictions as he may think fit to impose, delegate any of his functions or powers imposed or conferred upon him under this Act, except his power of delegation, to the Deputy Commissioners or Assistant Commissioners, and any function or power so delegated may be performed and exercised by the officer in the name and on behalf of the Commissioner.

(2) The delegation under subsection (1) shall not preclude the Commissioner himself from performing or exercising at any time the delegated functions or powers.

Direction by Minister

59. (1) The Commissioner shall be responsible to the Minister.

(2) The Minister may give to the Commissioner directions of a general character consistent with the provisions of this Act relating to the performance of the functions and powers of the Commissioner and the Commissioner shall give effect to such directions.

Returns, reports, accounts and information

60. (1) The Commissioner shall furnish to the Minister and any such public authority as may be directed by the Minister, the returns, reports, accounts and information with respect to his activities as the Minister may require or direct.

(2) Without prejudice to the generality of subsection (1), the Commissioner shall, as soon as practicable after the end of each financial year, cause to be made and transmitted to the Minister and if so directed by the Minister to any other public authority, a report dealing with the activities of the Commissioner during the preceding financial year, and the report shall be in such form and shall contain such information relating to the proceedings and policies of the Commissioner as the Minister may specify.

PART V

PERSONAL DATA PROTECTION FUND

Establishment of Fund

61. (1) For the purposes of this Act, a fund to be known as the "Personal Data Protection Fund" is established.

(2) The Fund shall be controlled, maintained and operated by the Commissioner.

(3) The Fund shall consist of—

(a) such sums as may be provided by Parliament for the purposes of this Act from time to time;

(b) fees, costs and any other charges imposed by or payable to the Commissioner under this Act;

(c) all monies derived from the sale, disposal, lease, hire or any other dealings with the movable or immovable property vested in or acquired by the Commissioner;

(d) all monies as may be paid to the Commissioner from time to time for loans given by the Commissioner; and

(e) all other monies or property which may in any manner become payable to or vested in the Commissioner in respect of any matter incidental to his functions and powers.

Expenditure to be charged on Fund

62. The Fund may be expended for the following purposes:

(a) paying any expenditure lawfully incurred by the Commissioner;

(b) paying any expenses incurred for organizing campaigns, research, studies and publication of materials for the protection of personal data;

(c) paying the remuneration, allowances, benefits and other expenses of the Commissioner, Deputy Commissioners, Assistant Commissioners, members of the Advisory Committee, members, officers and servants of the Appeal Tribunal and officers and servants of the Commissioner, including the granting of loans and advances, superannuation allowances, retirement benefits and gratuities;

(d) paying any other expenses, expenditure, fees and costs, including fees for the engagement of consultants, and legal fees and costs, properly incurred or accepted, or deemed fit by the Commissioner in the performance of his functions and the exercise of his powers;

(e) purchasing or hiring equipment and materials, acquiring land and any assets, and carrying out any other works and undertakings in the performance of his functions and the exercise of his powers; and

(f) generally, paying any expenses for carrying into effect the provisions of this Act.

Conservation of Fund

63. It shall be the duty of the Commissioner to conserve the Fund by so performing his functions and exercising his powers under this Act as to secure that the total revenues of the Commissioner are sufficient to meet all sums properly chargeable to its revenue account, including depreciation and interest on capital, taking one year with another.

Reserve fund

64. The Commissioner shall establish and maintain a reserve fund within the Fund.

Financial year

65. The financial year of the Commissioner shall begin on 1 January and end on 31 December of each year.

Limitation on contracts

66. The Commissioner shall not, without the approval of the Minister and the concurrence of the Minister of Finance, enter into any contract under which the Commissioner is to pay or receive an amount exceeding two million ringgit.

Bank accounts

67. The Commissioner shall open and maintain an account or accounts with such financial institution or financial institutions in Malaysia as the Commissioner thinks fit; and every such account shall be operated in such manner as may be authorized by the Commissioner.

Accounts and audit

68. The Commissioner shall cause proper accounts to be kept and maintained in respect of the Fund and in compliance with the provisions of the Statutory Bodies (Accounts and Annual Reports) Act 1980 [*Act 240*].

Expenditure and preparation of estimates

69. (1) The expenditure of the Commissioner up to such amount as may be authorized by the Minister for any one year shall be defrayed out of the Fund.

(2) Before 1 June of each year, the Commissioner shall submit to the Minister an estimate of the expenditure for the following year in such form and containing such particulars as the Minister may direct.

(3) The Minister shall, before 1 January of the following year, notify the Commissioner of the amount authorized for expenditure generally or of the amounts authorized for each description of expenditure based on the estimate prepared under subsection (2).

(4) The Commissioner may at any time submit to the Minister a supplementary estimate of its expenditure for any one year and the Minister may allow the whole or any part of the additional expenditure to be included in the supplementary estimate.

Part VI

PERSONAL DATA PROTECTION ADVISORY COMMITTEE

Establishment of Advisory Committee

70. There is established a Personal Data Protection Advisory Committee.

Functions of Advisory Committee

71. (1) The functions of the Advisory Committee shall be—

(a) to advise the Commissioner on all matters relating to personal data protection, and the due administration and enforcement of this Act; and

(b) to advise the Commissioner on any matter referred by him to the Advisory Committee.

(2) The Commissioner shall not be bound to act upon the advice of the Advisory Committee.

Members of Advisory Committee

72. The Advisory Committee shall consist of the following members to be appointed by the Minister:

(a) a Chairman;

(b) three members from the public sector; and

(c) at least seven but not more than eleven other members.

Tenure of office

73. A member appointed under section 72 shall, unless he sooner resigns or vacates his office or his appointment is sooner revoked, hold office for such period not exceeding three years as the Minister may determine at the time of his appointment, and shall be eligible for reappointment; but no member shall hold office for more than two consecutive terms.

Revocation of appointment and resignation

74. (1) The Minister may at any time revoke the appointment of any member of the Advisory Committee and shall state the reason for such revocation.

(2) A member of the Advisory Committee appointed under section 72 may at any time resign from his office by giving a written notice addressed to the Minister fourteen days prior to the intended date of resignation.

Temporary exercise of functions of Chairman

75. (1) The Minister may temporarily appoint any member of the Advisory Committee to act as the Chairman for the period when—

(a) the Chairman is by reason of illness, leave of absence or any other cause unable to perform his functions for any substantial period; or

(b) the office of the Chairman is vacant.

(2) A member appointed under subsection (1) shall, during the period in which he is performing the functions of the Chairman under this section, be deemed to be the Chairman.

Vacation of office

76. The office of a member of the Advisory Committee shall be vacated—

(a) if he dies;

(b) if there has been proved against him, or he has been convicted of, a charge in respect of—

(i) an offence involving fraud, dishonesty or moral turpitude;

(ii) an offence under any law relating to corruption; or

(iii) any other offence punishable with imprisonment (in itself only or in addition to or in lieu of a fine) for more than two years;

(c) if his conduct, whether in connection with his duties as a member of the Advisory Committee or otherwise, has been such as to bring discredit on the Advisory Committee;

(d) if he becomes bankrupt;

(e) if he is of unsound mind or is otherwise incapable of discharging his duties;

(f) in the case of the Chairman, if he absents himself from a meeting of the Advisory Committee without leave in writing of the Minister;

(g) in the case of a member of the Advisory Committee other than the Chairman, if he absents himself from three consecutive meetings of the Advisory Committee without leave in writing of the Chairman;

(h) if his appointment is revoked by the Minister; or

(i) if his resignation is accepted by the Minister.

Allowances

77. The Chairman and all other members of the Advisory Committee may be paid such allowances as the Minister may determine after consultation with the Minister of Finance.

Time and place of meetings

78. (1) The Advisory Committee is to hold as many meetings as are necessary for the efficient performance of its functions and such meetings are to be held at such places and times as the Chairman may decide, provided that the Chairman shall not allow more than two months to lapse between meetings.

(2) The Chairman shall call for a meeting if requested to do so in writing by the Minister or by at least four members of the Advisory Committee.

Advisory Committee may invite others to attend meetings

79. (1) The Advisory Committee may invite any person to attend any meeting or deliberation of the Advisory Committee for the purpose of assisting it on any matter under discussion.

(2) A person invited under subsection (1) shall be paid such allowances as may be determined by the Commissioner.

Minutes

80. (1) The Advisory Committee shall cause minutes of all its meetings to be maintained and kept in a proper form.

(2) Minutes made of meetings of the Advisory Committee shall, if duly signed, be admissible in evidence in all legal proceedings without further proof.

(3) Every meeting of the Advisory Committee in respect of the proceedings of which minutes have been so made shall be deemed to have been duly convened and held and all members thereat to have been duly qualified to act.

Procedure

81. The Advisory Committee may regulate its own procedure.

Members to devote time to business of Advisory Committee

82. The members of the Advisory Committee shall devote such time to the business of the Advisory Committee as is necessary to discharge their duties effectively.

PART VII

APPEAL TRIBUNAL

Establishment of Appeal Tribunal

83. There is established an Appeal Tribunal for the purpose of reviewing any of the matters on appeal as set out in section 93.

Powers of Appeal Tribunal

84. (1) The Appeal Tribunal shall have the power—

(a) to summon parties to the proceedings or any other person to attend before it to give evidence in respect of an appeal;

(b) to procure and receive evidence on oath or affirmation, whether written or oral, and examine all such persons as witnesses as the Appeal Tribunal considers necessary;

(c) where a person is so summoned, to require the production of any information, document or other thing in his possession or under his control which the Appeal Tribunal considers necessary for the purposes of the appeal;

(d) to administer any oath, affirmation or statutory declaration, as the case may require;

(e) where a person is so summoned, to allow the payment for any reasonable expenses incurred in connection with his attendance;

(f) to admit evidence or reject evidence adduced, whether oral or documentary, and whether admissible or inadmissible under the provisions of any written law relating to the admissibility of evidence;

(g) to adjourn the hearing of an appeal from time to time, including the power to adjourn to consider its decision; and

(h) generally to direct and do all such matters as may be necessary or expedient for the expeditious decision of the appeal.

(2) The Appeal Tribunal shall have the powers of a subordinate court with regard to the enforcement of attendance of witnesses, hearing evidence on oath or affirmation and punishment for contempt.

Members of Appeal Tribunal

85. (1) The Appeal Tribunal shall consist of the following members who shall be appointed by the Minister:

(a) a Chairman; and

(b) at least two other members, or such greater number of members as the Minister thinks necessary.

(2) The Minister shall appoint a person who is a member of the Judicial and Legal Service of the Federation for at least ten years to be the Chairman of the Appeal Tribunal.

(3) The appointment of the members of the Appeal Tribunal shall be published by notification in the *Gazette*.

Secretary to Appeal Tribunal and other officers, etc.

86. (1) The Minister shall appoint a Secretary to the Appeal Tribunal on such terms and conditions as he thinks desirable.

(2) The Secretary to the Appeal Tribunal shall be responsible for the administration and management of the functions of the Appeal Tribunal.

(3) The Minister may appoint such number of officers and servants as the Minister thinks fit to assist the Secretary to the Appeal Tribunal in carrying out his functions under subsection (2).

(4) The Secretary to the Appeal Tribunal shall have the general control of the officers and servants of the Appeal Tribunal.

(5) For the purposes of this Act, the Secretary to the Appeal Tribunal and the officers appointed under subsection (3) shall be deemed to be officers of the Appeal Tribunal.

Tenure of office

87. A member of the Appeal Tribunal appointed under subsection 85(1) shall, unless he sooner resigns or vacates his office or his appointment is sooner revoked—

(a) hold office for a term not exceeding three years; and

(b) shall be eligible for reappointment upon the expiry of his term of office, but shall not be appointed for more than two consecutive terms.

Resignation and revocation of appointment

88. (1) The Minister may at any time revoke the appointment of a member of the Appeal Tribunal and shall state the reason for such revocation.

(2) A member of the Appeal Tribunal appointed under subsection 85(1) may at any time resign from his office by giving a written notice addressed to the Minister fourteen days prior to the intended date of resignation.

Temporary exercise of functions of Chairman

89. (1) The Minister may temporarily appoint any member of the Appeal Tribunal to act as the Chairman for the period when—

(a) the Chairman is by reason of illness, leave of absence or any other cause unable to perform his functions for any substantial period; or

(b) the office of the Chairman is vacant.

(2) A member appointed under subsection (1) shall, during the period in which he is performing the functions of the Chairman under this section, be deemed to be the Chairman.

Vacation of office

90. The office of a member of the Appeal Tribunal shall be vacated—

(a) if he dies;

(b) if there has been proved against him, or he has been convicted of, a charge in respect of—

(i) an offence involving fraud, dishonesty or moral turpitude;

(ii) an offence under any law relating to corruption; or

(iii) any other offence punishable with imprisonment (in itself only or in addition to or in lieu of a fine) for more than two years;

(c) if his conduct, whether in connection with his duties as a member of the Appeal Tribunal or otherwise, has been such as to bring discredit on the Appeal Tribunal;

(d) if he becomes bankrupt;

(e) if he is of unsound mind or otherwise incapable of discharging his duties;

(f) if he fails to comply with his obligations under section 92;

(g) if his performance as a member of the Appeal Tribunal has been unsatisfactory for a significant period of time;

(h) if his appointment is revoked by the Minister; or

(i) if his resignation is accepted by the Minister.

Allowances

91. (1) The Chairman of the Appeal Tribunal appointed under paragraph 85(1)*(a)* shall be paid such fixed allowances and other allowances as the Minister may determine.

(2) The other members of the Appeal Tribunal appointed under paragraph 85(1)*(b)* shall be paid—

(a) daily sitting allowances during the sitting of the Appeal Tribunal; and

(b) lodging, travelling and subsistence allowances,

as the Minister may determine.

Disclosure of interest

92. (1) A member of the Appeal Tribunal shall disclose, as soon as practicable, to the Chairman any interest, whether substantial or not, which might conflict with the member's duties as a member of the Appeal Tribunal in a particular matter.

(2) If the Chairman is of the opinion that the member's interest is in conflict with his duties as a member of the Appeal Tribunal, the Chairman shall inform all the parties to the matter of the conflict.

(3) If none of the parties to the matter objects to the conflict, the member may continue to execute his duties as a member of the Appeal Tribunal in relation to that matter.

(4) If a party to the matter objects to the conflict, the member of the Appeal Tribunal shall not continue to execute his duties as a member of the Appeal Tribunal in relation to that matter.

(5) The failure by the member to disclose his interest under subsection (1) shall—

(a) invalidate the decision of the Appeal Tribunal, unless all parties agree to be bound by the decision; and

(b) subject the member to the revocation of his appointment under section 88.

Appeal to Appeal Tribunal

93. (1) Any person who is aggrieved by the decision of the Commissioner under this Act relating to matters, including—

(a) the registration of a data controller under Division 2 of Part II;

(b) the refusal of the Commissioner to register a code of practice under subsection 23(5);

(c) the failure of the data controller to comply with a data access request or data correction request under Division 4 of Part II;

(d) the issuance of an enforcement notice under section 108;

(e) the refusal of the Commissioner to vary or revoke an enforcement notice under section 109; and

(f) the refusal of the Commissioner to carry out or continue an investigation initiated by a complaint under Part VIII,

may appeal to the Appeal Tribunal by filing a notice of appeal with the Appeal Tribunal.

(2) The notice of appeal shall be made in writing to the Appeal Tribunal within thirty days from the date of the decision of the Commissioner, or in the case of an enforcement notice, within thirty days after the enforcement notice is served upon the relevant data controller, and the appellant shall serve a copy of the notice of appeal upon the Commissioner.

(3) The notice of appeal shall state briefly the substance of the decision of the Commissioner against which an appeal is filed with the Appeal Tribunal, contain an address at which any notice or document connected with the appeal may be served upon the appellant or his advocate, and shall be signed by the appellant or his advocate.

Record of decision of Commissioner

94. (1) The aggrieved person referred to in subsection 93(1) may, on his own initiative, request in writing from the Commissioner a statement of the grounds for his decision.

(2) Subject to subsection (3), the Commissioner shall, upon receiving the written request under subsection (1), provide to the aggrieved person, upon the payment of a prescribed fee, a copy of a statement of the grounds for his decision.

(3) Where a notice of appeal has been filed with the Appeal Tribunal under subsection 93(1), the Commissioner shall, if he has not already written the grounds for his decision in respect of the matter stated in the notice under subsection 93(1), record in writing the grounds for his decision, and the written grounds shall form part of the record of proceedings before the Appeal Tribunal.

Stay of decision pending appeal

95. (1) A decision of the Commissioner shall be valid, binding and enforceable pending the decision of an appeal by the Appeal Tribunal, except where an appeal against an enforcement notice has been made to the Appeal Tribunal in accordance with subsection 93(2), or a stay of the decision of the Commissioner has been applied for under subsection (2) and granted by the Appeal Tribunal.

(2) An aggrieved person may apply in writing to the Appeal Tribunal for a stay of the decision of the Commissioner on or after the notice of appeal has been filed with the Appeal Tribunal.

Composition of Appeal Tribunal

96. (1) Every proceeding of the Appeal Tribunal shall be heard and disposed of by three members or such greater uneven number of members of the Appeal Tribunal as the Chairman may in any particular case determine.

(2) In the absence of the Chairman, the senior member of the Appeal Tribunal shall preside.

Sitting of Appeal Tribunal

97. (1) The Appeal Tribunal shall sit on such dates and at such places as the Chairman may appoint.

(2) The Chairman may cancel or postpone any sitting of the Appeal Tribunal or change the place of the sitting which has been appointed under subsection (1).

(3) The Secretary to the Appeal Tribunal shall by written notice inform the parties to the appeal of any change to the date or place of any sitting of the Appeal Tribunal.

Procedure of Appeal Tribunal

98. The Appeal Tribunal may regulate its own procedure.

Decision of Appeal Tribunal

99. (1) The decision of the Appeal Tribunal on any matter shall be decided on a majority of members of the Appeal Tribunal.

(2) A decision of the Appeal Tribunal shall be final and binding on the parties to the appeal.

Enforcement of decision of Appeal Tribunal

100. A decision given by the Appeal Tribunal may, by leave of the Sessions Court, be enforced in the same manner as a judgment or order to the same effect, and where leave is so given, judgment may be entered in terms of the decision.

PART VIII

INSPECTION, COMPLAINT AND INVESTIGATION

Inspection of personal data system

101. (1) The Commissioner may carry out an inspection of—

(a) any personal data system used by data controllers for the purpose of ascertaining information to assist the Commissioner in making recommendations to the relevant data controller relating to the promotion of compliance with the provisions of this Act, in particular the Personal Data Protection Principles, by the relevant data controller; or

(b) any personal data system used by data controllers belonging to a class of data controllers for the purpose of ascertaining information to assist the Commissioner in making recommendations to the class of data controllers to which the relevant data controller belongs relating to the promotion of compliance with the provisions of this Act, in particular the Personal Data Protection Principles, by the class of data controllers to which the relevant data controller belongs.

(2) For the purposes of this section—

"data controller" includes a data processor;

"personal data system" means any system, whether automated or otherwise, which is used, whether in whole or in part, by a data controller for the processing of personal data, and includes the record maintained under section 44 and any document and equipment forming part of the system.

Relevant data controller, etc., to be informed of result of inspection

102. Where the Commissioner has completed an inspection of a personal data system, he shall in such manner and at such time as he thinks fit inform the relevant data controller or class of data controllers to which the relevant data controller belongs of—

(a) the results of the inspection;

(b) any recommendations arising from the inspection that the Commissioner thinks fit to make relating to the promotion of compliance with the provisions of this Act, in particular the Personal Data Protection Principles, by the relevant data controller or the class of data controllers to which the relevant data controller belongs; and

(c) such other comments arising from the inspection as he thinks fit.

Reports by Commissioner

103. (1) The Commissioner may, after completing the inspection of any personal data system used by data controllers belonging to a class of data controllers, publish a report—

(a) setting out any recommendations arising from the inspection that the Commissioner thinks fit to make relating to the promotion of compliance with the provisions of this Act, in particular the Personal Data Protection Principles, by the class of data controllers to which the relevant data controllers belong; and

(b) in such manner as he thinks fit.

(2) A report published under subsection (1) shall be so framed as to prevent the identity of any individual from being ascertained.

Complaint

104. Any individual or relevant person may make a complaint in writing to the Commissioner about an act, practice or request—

(a) specified in the complaint;

(b) that has been done or engaged in, or is being done or engaged in, by the data controller specified in the complaint;

(c) that relates to personal data of which the individual is the data subject; and

(d) that may be a contravention of the provisions of this Act, including any codes of practice.

Investigation by Commissioner

105. (1) Where the Commissioner receives a complaint under section 104, the Commissioner shall, subject to section 106, carry out an investigation in relation to the relevant data controller to ascertain whether the act, practice or request specified in the complaint contravenes the provisions of this Act.

(2) Where the Commissioner has reasonable grounds to believe that an act, practice or request has been done or engaged in, or is being done or engaged in, by the relevant data controller that relates to personal data and such act, practice or request may be a contravention of the provisions of this Act, the Commissioner may carry out an investigation in relation to the relevant data controller to ascertain whether the act, practice or request contravenes the provisions of this Act.

(3) Part IX shall apply in respect of investigations carried out by the Commissioner under this Part.

Restriction on investigation initiated by complaint

106. (1) The Commissioner may refuse to carry out or continue an investigation initiated by a complaint if he is of the opinion that, having regard to all the circumstances of the case—

(a) the complaint, or a complaint of a substantially similar nature, has previously initiated an investigation as a result of which the Commissioner was of the opinion that there has been no contravention of the provisions of this Act;

(b) the act, practice or request specified in the complaint is trivial;

(c) the complaint is frivolous, vexatious or is not made in good faith; or

(d) any investigation or further investigation is for any other reason unnecessary.

(2) Notwithstanding the generality of the powers conferred on the Commissioner by this Act, the Commissioner may refuse to carry out or continue an investigation initiated by a complaint—

(a) if—

(i) the complainant; or

(ii) in the case where the complainant is a relevant person in relation to a data subject, the data subject or relevant person, as the case may be,

has had actual knowledge of the act, practice or request specified in the complaint for more than two years immediately preceding the date on which the Commissioner received the complaint, unless the Commissioner is satisfied that in all the circumstances of the case it is proper to carry out or continue the investigation;

(b) if the complaint is made anonymously;

(c) if the complainant cannot be identified or traced;

(d) if the Commissioner is satisfied that the relevant data controller has not been a data controller for a period of not less than two years immediately preceding the date on which the Commissioner received the complaint; or

(e) in any other circumstances as he thinks fit.

(3) Where the Commissioner refuses under this section to carry out or continue an investigation initiated by a complaint, he shall, as soon as practicable but in any case not later than thirty days after the date of receipt of the complaint, by notice in writing served on the complainant inform the complainant of the refusal and of the reasons for the refusal.

(4) An appeal may be made to the Appeal Tribunal against any refusal specified in the notice under subsection (3) by the complainant on whom the notice was served or if the complainant is a relevant person, by the data subject in respect of whom the complainant is the relevant person.

Commissioner may carry out or continue investigation initiated by complaint notwithstanding withdrawal of complaint

107. Where the Commissioner is of the opinion that it is in the public interest so to do, he may carry out or continue an investigation initiated by a complaint notwithstanding that the complainant has withdrawn the complaint and, in any such case, the provisions of this Act shall apply to the complaint and the complainant as if the complaint had not been withdrawn.

Enforcement notice

108. (1) Where, following the completion of an investigation about an act, practice or request specified in the complaint, the Commissioner is of the opinion that the relevant data controller—

(a) is contravening a provision of this Act; or

(b) has contravened such a provision in circumstances that make it likely that the contravention will continue or be repeated,

then the Commissioner may serve on the relevant data controller an enforcement notice—

(A) stating that he is of that opinion;

(B) specifying the provision of this Act on which he has based that opinion and the reasons why he is of that opinion;

(C) directing the relevant data controller to take such steps as are specified in the enforcement notice to remedy the contravention or, as the case may be, the matters occasioning it within such period as is specified in the enforcement notice; and

(D) directing, where necessary, the relevant data controller to cease processing the personal data pending the remedy of the contravention by the relevant data controller.

(2) In deciding whether to serve an enforcement notice, the Commissioner shall consider whether the contravention or the matter to which the enforcement notice relates has caused or is likely to cause damage or distress to the data subject of the personal data to which the contravention or matter relates.

(3) The steps as specified in the enforcement notice to remedy the contravention or matter to which the enforcement notice relates may be framed—

(a) to any extent by reference to any approved code of practice; or

(b) so as to afford the relevant data controller a choice between different ways of remedying the contravention or matter.

(4) The period specified in the enforcement notice under subsection (1) for taking the steps specified in it shall not expire before the end of the period specified in subsection 93(2) within which an appeal against the enforcement notice may be made and, if such an appeal is made, those steps need not be taken pending the determination or withdrawal of the appeal.

(5) Notwithstanding subsection (4), if the Commissioner is of the opinion that by reason of special circumstances the steps specified in the enforcement notice should be taken as a matter of urgency—

(a) he may include a statement to that effect in the enforcement notice together with the reasons why he is of that opinion; and

(b) where such a statement is so included, subsection (4) shall not apply but the enforcement notice shall not require those steps to be taken before the end of the period of seven days from the date on which the enforcement notice was served.

(6) An appeal may be made to the Appeal Tribunal against an enforcement notice by the relevant data controller in accordance with section 93.

(7) Where the Commissioner—

(a) forms an opinion referred to in subsection (1) in respect of the relevant data controller at any time before the completion of an investigation; and

(b) is also of the opinion that, by reason of special circumstances, an enforcement notice should be served on the relevant data controller as a matter of urgency,

he may so serve the enforcement notice notwithstanding that the investigation has not been completed and, in any such case—

(A) the Commissioner shall, without prejudice to any other matters to be included in the enforcement notice, specify in the enforcement notice the reasons as to why he is of the opinion referred to in paragraph *(b)*; and

(B) the other provisions of this Act, including this section, shall be construed accordingly.

(8) A person who fails to comply with an enforcement notice commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

Variation or cancellation of enforcement notice

109. The Commissioner may, on his own initiative or on the application of a relevant data controller, vary or cancel the enforcement notice served under subsection 108(1) by notice in writing to the relevant data controller if the Commissioner is satisfied with the action taken by the relevant data controller to remedy the contravention.

Part IX

ENFORCEMENT

Authorized officers

110. The Commissioner may in writing authorize any officer appointed under sections 50 and 51 or any public officer to exercise the powers of enforcement under this Act.

Authority card

111. (1) The Commissioner shall issue to each authorized officer an authority card which shall be signed by the Commissioner.

(2) Whenever the authorized officer exercises any of the powers of enforcement under this Act, he shall produce on demand to the person against whom the power is being exercised the authority card issued to him under subsection (1).

Power of investigation

112. (1) An authorized officer may investigate the commission of any offence under this Act.

(2) For the avoidance of doubt, it is declared that for the purposes of this Act, the authorized officer shall have all or any of the special powers of a police officer of whatever rank in relation to police investigations in seizable cases as provided for under the Criminal Procedure Code [*Act 593*], and such powers shall be in addition to the powers provided for under this Act and not in derogation thereof.

Search and seizure with warrant

113. (1) If it appears to a Magistrate, upon written information on oath from the authorized officer and after such inquiry as the Magistrate considers necessary, that there is reasonable cause to believe that—

(a) any premises has been used for; or

(b) there is in any premises evidence necessary to the conduct of an investigation into,

the commission of an offence under this Act, the Magistrate may issue a warrant authorizing the authorized officer named in the warrant at any reasonable time by day or night and with or without assistance, to enter the premises and if need be by force.

(2) Without affecting the generality of subsection (1), the warrant issued by the Magistrate may authorize the search and seizure of—

(a) any computer, book, account, computerized data or other document which contains or is reasonably suspected to contain information as to any offence suspected to have been committed;

(b) any signboard, card, letter, pamphlet, leaflet or notice representing or implying that the person is registered under this Act; or

(c) any equipment, instrument or article that is reasonably believed to furnish evidence of the commission of the offence.

(3) An authorized officer conducting a search under subsection (1) may, for the purpose of investigating into the offence, search any person who is in or on the premises.

(4) An authorized officer making a search of a person under subsection (3) or section 114 may seize or take possession of, and place in safe custody all things other than the necessary clothing found upon the person, and any of those things which there is reason to believe were the instruments or other evidence of the offence may be detained until the discharge or acquittal of the person.

(5) Whenever it is necessary to cause a woman to be searched, the search shall be made by another woman with strict regard to decency.

(6) If, by the reason of its nature, size or amount, it is not practicable to remove any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized under this section, the authorized officer shall by any means seal such computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article in the premises or container in which it is found.

(7) A person who, without lawful authority, breaks, tampers with or damages the seal referred to in subsection (6) or removes any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article under seal or attempts to do so commits an offence and shall, on conviction, be liable to a fine not exceeding fifty thousand ringgit or to imprisonment for a term not exceeding six months or to both.

Search and seizure without warrant

114. If an authorized officer is satisfied upon information received that he has reasonable cause to believe that by reason of delay in obtaining a search warrant under section 113 the investigation would be adversely affected or evidence of the commission of an offence is likely to be tampered with, removed, damaged or destroyed, the authorized officer may enter the premises and exercise in, upon and in respect of the premises all the powers referred to in section 113 in as full and ample a manner as if he were authorized to do so by a warrant issued under that section.

Access to computerized data

115. (1) An authorized officer conducting a search under sections 113 and 114 shall be given access to computerized data whether stored in a computer or otherwise.

(2) For the purposes of this section, "access"—

(a) includes being provided with the necessary password, encryption code, decryption code, software or hardware and any other means required to enable comprehension of computerized data; and

(b) has the meaning assigned to it by subsections 2(2) and (5) of the Computer Crimes Act 1997 [*Act 563*].

Warrant admissible notwithstanding defects

116. A search warrant issued under this Act shall be valid and enforceable notwithstanding any defect, mistake or omission therein or in the application for such warrant, and any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized under such warrant shall be admissible in evidence in any proceedings under this Act.

List of computer, book, account, etc., seized

117. (1) Except as provided in subsection (2), where any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article is seized pursuant to this Act, the authorized officer making the seizure—

(a) shall prepare—

(i) a list of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized and shall sign the list; and

(ii) a written notice of the seizure containing the grounds for the seizure and shall sign the notice; and

(b) shall as soon as practicable serve a copy of the list of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized and the written notice of the seizure to the occupier of the premises which have been searched, or to his agent or servant at those premises.

(2) The written notice of the seizure shall not be required to be served in pursuance of paragraph (1)*(b)* where the seizure is made in the presence of the person against whom proceedings under this Act are intended to be taken, or in the presence of the owner of such property or his agent, as the case may be.

(3) If the premises are unoccupied, the authorized officer shall post a copy of the list of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized conspicuously on the premises.

Release of computer, book, account, etc., seized

118. (1) If any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article has been seized under this Act, the authorized officer who effected the seizure may, after referring to the Public Prosecutor, release the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article to the person as he determines to be lawfully entitled to it, if the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article is not liable to forfeiture under this Act, and is not otherwise required for the purpose of any proceedings under this Act or for the purpose of any prosecution under any other written law, and in such event neither the authorized officer effecting the seizure, nor the Federal Government, Commissioner or any person acting on behalf of the Federal Government or Commissioner shall be liable to any proceedings by any person if the seizure and the release of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article had been effected in good faith.

(2) A record in writing shall be made by the authorized officer effecting the release of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article under subsection (1) specifying in detail the circumstances of and the reason for the release, and he shall send a copy of the record to the Public Prosecutor within seven days of the release.

No cost or damages arising from seizure to be recoverable

119. No person shall, in any proceedings before any court in respect of any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized in the exercise or the purported exercise of any power conferred under this Act, be entitled to the costs of such proceedings or to any damages or other relief unless such seizure was made without reasonable cause.

Obstruction to search

120. Any person who—

(a) refuses any authorized officer access to any premise which the authorized officer is entitled to have under this Act or in the execution of any duty imposed or power conferred by this Act;

(b) assaults, obstructs, hinders or delays any authorized officer in effecting any entry which the authorized officer is entitled to effect under this Act, or in the execution of any duty imposed or power conferred by this Act; or

(c) refuses any authorized officer any information relating to an offence or suspected offence under this Act or any other information which may reasonably be required of him and which he has in his knowledge or power to give,

commits an offence and shall, on conviction, be liable to imprisonment for a term not exceeding two years or to a fine not exceeding ten thousand ringgit or to both.

Power to require production of computer, book, account, etc.

121. An authorized officer shall, for the purposes of the execution of this Act, have the power to do all or any of the following:

(a) to require the production of any computer, book, account, computerized data or other document kept by the data controller or any other person and to inspect, examine and to download from them, make copies of them or take extracts from them;

(b) to require the production of any identification document from any person in relation to any act or offence under this Act;

(c) to make such enquiries as may be necessary to ascertain whether the provisions of this Act have been complied with.

Power to require attendance of persons acquainted with case

122. (1) An authorized officer making an investigation under this Act may by order in writing require the attendance before himself of any person who appears to the authorized officer to be acquainted with the facts and circumstances of the case, and such person shall attend as so required.

(2) If any person refuses or fails to attend as so required, the authorized officer may report such refusal or failure to a Magistrate who shall issue a summons to secure the attendance of such person as may be required by the order made under subsection (1).

Examination of persons acquainted with case

123. (1) An authorized officer making an investigation under this Act may examine orally any person supposed to be acquainted with the facts and circumstances of the case and shall reduce into writing any statement made by the person so examined.

(2) Such person shall be bound to answer all questions relating to the case put to him by the authorized officer:

Provided that such person may refuse to answer any question the answer to which would have a tendency to expose him to a criminal charge or penalty or forfeiture.

(3) A person making a statement under this section shall be legally bound to state the truth, whether or not such statement is made wholly or partly in answer to questions.

(4) The authorized officer examining a person under subsection (1) shall first inform that person of the provisions of subsections (2) and (3).

(5) A statement made by any person under this section shall, whenever possible, be taken down in writing and signed by the person making it or affixed with his thumb print, as the case may be, after it has been read to him in the language in which he made it and after he has been given an opportunity to make any corrections he may wish.

Admission of statements in evidence

124. (1) Except as provided in this section, no statement made by any person to an authorized officer in the course of an investigation made under this Act shall be used in evidence.

(2) When any witness is called for the prosecution or for the defence, other than the accused, the court shall, on the request of the accused or the prosecutor, refer to any statement made by that witness to the authorized officer in the course of the investigation under this Act and may then, if the courts thinks fit in the interest of justice, direct the accused to be furnished with a copy of it and the statement may be used to impeach the credit of the witness in the manner provided by the Evidence Act 1950 [*Act 56*].

(3) Where the accused had made a statement during the course of an investigation, such statement may be admitted in evidence in support of his defence during the course of the trial.

(4) Nothing in this section shall be deemed to apply to any statement made in the course of an identification parade or falling within section 27 or paragraphs 32(1)*(a)*, *(i)* and *(j)* of the Evidence Act 1950.

(5) When any person is charged with any offence in relation to—

(a) the making; or

(b) the contents,

of any statement made by him to an authorized officer in the course of an investigation made under this Act, that statement may be used as evidence in the prosecution's case.

Forfeiture of computer, book, account, etc., seized

125. (1) Any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized shall be liable to forfeiture.

(2) An order for the forfeiture of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized and liable to forfeiture under this Act shall be made by the court before which the prosecution with regard thereto has been held if it is proved to the satisfaction of the court that an offence under this Act has been committed and that the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized was the subject matter of or was used in the commission of the offence, notwithstanding that no person has been convicted of such offence.

(3) If there is no prosecution with regard to any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized under this Act, such computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article shall be taken and deemed to be forfeited at the expiration of a period of one calendar month from the date of service of a notice to

the last-known address of the person from whom the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article was seized indicating that there is no prosecution in respect of such computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article, unless before the expiration of that period a claim thereto is made in the manner set out in subsections (4), (5) and (6).

(4) Any person asserting that he is the owner of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article referred to in subsection (3) and that it is not liable to forfeiture may, personally or by his agent authorized in writing, give written notice to the authorized officer in whose possession such computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article is held that he claims the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article.

(5) On receipt of the notice under subsection (4), the authorized officer shall refer the matter to a Magistrate for his decision.

(6) The Magistrate to whom the matter is referred under subsection (5) shall issue a summons requiring the person asserting that he is the owner of the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article and the person from whom it was seized to appear before the Magistrate, and upon their appearance or default to appear, due service of the summons having been proved, the Magistrate shall proceed to the examination of the matter and, on proof that an offence under this Act has been committed and that the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized was the subject matter of or was used in the commission of such offence, the Magistrate shall order the computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article to be forfeited, and shall, in the absence of such proof, order its release.

(7) Any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article forfeited or deemed to be forfeited shall be delivered to the Commissioner and shall be disposed of in such manner as the Commissioner thinks fit.

Joinder of offences

126. Notwithstanding anything contained in section 164 of the Criminal Procedure Code, where a person is accused of more than one offence under this Act, he may be charged with and tried at one trial for any number of such offences committed within the space of any length of time.

Power of arrest

127. (1) An authorized officer or police officer may arrest without warrant any person whom he reasonably believes has committed or is attempting to commit an offence under this Act.

(2) An authorized officer making an arrest under subsection (1) shall without unnecessary delay make over the person so arrested to the nearest police officer or, in the absence of a police officer, take such person to the nearest police station, and thereafter the person shall be dealt with as is provided for by the law relating to criminal procedure for the time being in force as if he had been arrested by a police officer.

Part X

MISCELLANEOUS

Register

128. (1) The Commissioner shall maintain in both physical and electronic forms a register as required under this Act.

(2) A person may on payment of the prescribed fee—

(a) inspect the register; or

(b) make a copy of or take extracts from an entry in the register.

(3) Where a person requests that a copy of an entry in the register be provided in an electronic form, the Commissioner may provide the relevant information by way of electronic means.

Transfer of personal data to places outside Malaysia

129. (1) (*Deleted by Act A1727*).

(2) A data controller may transfer any personal data of a data subject to any place outside Malaysia if—

(a) there is in that place in force any law which is substantially similar to this Act; or

(b) that place ensures an adequate level of protection in relation to the processing of personal data which is at least equivalent to the level of protection afforded by this Act.

(3) Notwithstanding subsection (2), a data controller may transfer any personal data to a place outside Malaysia if—

(a) the data subject has given his consent to the transfer;

(b) the transfer is necessary for the performance of a contract between the data subject and the data controller;

(c) the transfer is necessary for the conclusion or performance of a contract between the data controller and a third party which—

(i) is entered into at the request of the data subject; or

(ii) is in the interests of the data subject;

(d) the transfer is for the purpose of any legal proceedings or for the purpose of obtaining legal advice or for establishing, exercising or defending legal rights;

(e) the data controller has reasonable grounds for believing that in all circumstances of the case—

(i) the transfer is for the avoidance or mitigation of adverse action against the data subject;

(ii) it is not practicable to obtain the consent in writing of the data subject to that transfer; and

(iii) if it was practicable to obtain such consent, the data subject would have given his consent;

(f) the data controller has taken all reasonable precautions and exercised all due diligence to ensure that the personal data will not in that place be processed in any manner which, if that place is Malaysia, would be a contravention of this Act; or

(g) the transfer is necessary in order to protect the vital interests of the data subject.

(h) (*Deleted by Act A1727*).

(4) (*Deleted by Act A1727*).

(5) A data controller who contravenes this section commits an offence and shall, on conviction, be liable to a fine not exceeding three hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

(6) For the purposes of this section, "adverse action", in relation to a data subject, means any action that may adversely affect the data subject's rights, benefits, privileges, obligations or interests.

Unlawful collecting, etc., of personal data

130. (1) A person shall not knowingly or recklessly, without the consent of the data controller—

(a) collect or disclose personal data that is held by the data controller; or

(b) procure the disclosure to another person of personal data that is held by the data controller.

(2) Subsection (1) shall not apply to a person who shows—

(a) that the collecting or disclosing of personal data or procuring the disclosure of personal data—

(i) was necessary for the purpose of preventing or detecting a crime or for the purpose of investigations; or

(ii) was required or authorized by or under any law or by the order of a court;

(b) that he acted in the reasonable belief that he had in law the right to collect or disclose the personal data or to procure the disclosure of the personal data to the other person;

(c) that he acted in the reasonable belief that he would have had the consent of the data controller if the data controller had known of the collecting or disclosing of personal data or procuring the disclosure of personal data and the circumstances of it; or

(d) that the collecting or disclosing of personal data or procuring the disclosure of personal data was justified as being in the public interest in circumstances as determined by the Minister.

(3) A person who collects or discloses personal data or procures the disclosure of personal data in contravention of subsection (1) commits an offence.

(4) A person who sells personal data commits an offence if he has collected the personal data in contravention of subsection (1).

(5) A person who offers to sell personal data commits an offence if—

(a) he has collected the personal data in contravention of subsection (1); or

(b) he subsequently collects the personal data in contravention of subsection (1).

(6) For the purposes of subsection (5), an advertisement indicating that personal data is or may be for sale is an offer to sell the personal data.

(7) A person who commits an offence under this section shall, upon conviction, be liable to a fine not exceeding five hundred thousand ringgit or to imprisonment for a term not exceeding three years or to both.

Abetment and attempt punishable as offences

131. (1) A person who abets the commission of or who attempts to commit any offence under this Act shall be guilty of that offence and shall, on conviction, be liable to the punishment provided for that offence.

(2) A person who does any act preparatory to or in furtherance of the commission of any offence under this Act shall be guilty of that offence and shall, on conviction, be liable to the punishment provided for the offence:

Provided that any term of imprisonment imposed shall not exceed one-half of the maximum term provided for the offence.

Compounding of offences

132. (1) The Commissioner may, with the consent in writing of the Public Prosecutor, compound any offence committed by any person under this Act and prescribed to be a compoundable offence by making a written offer to the person suspected to have committed the offence to compound the offence upon payment to the Commissioner of an amount of money not exceeding fifty per centum of the amount of maximum fine for that offence within such time as may be specified in his written offer.

(2) An offer under subsection (1) may be made at any time after the offence has been committed but before any prosecution for it has been instituted, and if the amount specified in the

offer is not paid within the time specified in the offer or such extended time as the Commissioner may grant, prosecution for the offence may be instituted at any time after that against the person to whom the offer was made.

(3) Where an offence has been compounded under subsection (1), no prosecution shall be instituted in respect of the offence against the person to whom the offer to compound was made, and any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article seized in connection with the offence may be released or forfeited by the Commissioner, subject to such terms and conditions as he thinks fit to impose in accordance with the conditions of the compound.

(4) All sums of money received by the Commissioner under this section shall be paid into the Federal Consolidated Fund.

Offences by body corporate

133. (1) If a body corporate commits an offence under this Act, any person who at the time of the commission of the offence was a director, chief executive officer, chief operating officer, manager, secretary or other similar officer of the body corporate or was purporting to act in any such capacity or was in any manner or to any extent responsible for the management of any of the affairs of the body corporate or was assisting in such management—

(a) may be charged severally or jointly in the same proceedings with the body corporate; and

(b) if the body corporate is found to have committed the offence, shall be deemed to have committed that offence unless, having regard to the nature of his functions in that capacity and to all circumstances, he proves—

(i) that the offence was committed without his knowledge, consent or connivance; and

(ii) that he had taken all reasonable precautions and exercised due diligence to prevent the commission of the offence.

(2) If any person would be liable under this Act to any punishment or penalty for his act, omission, neglect or default, he shall be liable to the same punishment or penalty for every such act, omission, neglect or default of any employee or agent of his, or of the employee of the agent, if the act, omission, neglect or default was committed—

(a) by that person's employee in the course of his employment;

(b) by the agent when acting on behalf of that person; or

(c) by the employee of the agent in the course of his employment by the agent or otherwise on behalf of the agent acting on behalf of that person.

Prosecution

134. No prosecution for an offence under this Act shall be instituted except by or with the written consent of the Public Prosecutor.

Jurisdiction to try offences

135. Notwithstanding any other written law to the contrary, a Sessions Court shall have jurisdiction to try any offence under this Act and to impose full punishment for any such offence under this Act.

Service of notices or other documents

136. (1) Service of a notice or any other document upon any person shall be effected—

(a) by the delivering the notice or other document to the person;

(aa) by way of electronic means;

(b) by leaving the notice or other document at the last-known address of residence or place of business of the person in a cover addressed to that person; or

(c) by forwarding the notice or other document by post in an A.R. registered letter addressed to the person at his last-known address of residence or place of business.

(2) Where the person to whom there has been addressed an A.R. registered letter containing any notice or other document which may be given under this Act is informed of the fact that there is an A.R. registered letter awaiting him at a post office, and such person refuses or neglects to take delivery of such A.R. registered letter, such notice or other document shall be deemed to have been served upon him on the date on which he was so informed.

Public Authorities Protection Act 1948

137. The Public Authorities Protection Act 1948 [*Act 198*] shall apply to any action, suit, prosecution or proceedings against the Commissioner, Deputy Commissioner, Assistant Commissioner, any officer or servant of the Commissioner, any member of the Advisory Committee, any member, officer or servant of the Appeal Tribunal, or any authorized officer in respect of any act, neglect or default done or omitted by him or it in such capacity.

Public servant

138. The Commissioner, Deputy Commissioner, Assistant Commissioner, any officer or servant of the Commissioner, any member of the Advisory Committee, any member, officer or servant of the Appeal Tribunal, or any authorized officer while discharging his duty or performing his functions or exercising his powers under this Act in such capacity shall be deemed to be a public servant within the meaning of the Penal Code [*Act 574*].

Protection against suit and legal proceedings

139. No action, suit, prosecution or other proceedings shall lie or be brought, instituted or maintained in any court against—

(a) the Commissioner, Deputy Commissioner, Assistant Commissioner or any officer or servant of the Commissioner;

(b) any member of the Advisory Committee;

(c) any member, officer or servant of the Appeal Tribunal; or

(d) any authorized officer,

in respect of any act or omission done or omitted by him or it in good faith in such capacity.

Protection of informers

140. (1) Except as provided in subsections (2) and (3), no witness in any civil or criminal proceedings pursuant to this Act shall be obliged or permitted to disclose the name or address of any informer or the substance and nature of the information received from him or state any matter which might lead to his discovery.

(2) If any computer, book, account, computerized data or other document, signboard, card, letter, pamphlet, leaflet, notice, equipment, instrument or article which is in evidence or is liable to inspection in any civil or criminal proceedings whatsoever contains any entry in which any informer is named or described or which might lead to his discovery, the court shall cause all such entries to be concealed from view or to be obliterated in so far as may be necessary to protect the informer from discovery.

(3) If in a trial for any offence under this Act the court, after full inquiry into the case, is of the opinion that the informer wilfully made in his complaint a material statement which he knew or believed to be false or did not believe to be true, or if in any other proceedings the court is of the opinion that justice cannot be fully done between the parties in the proceeding without the discovery of the informer, the court may require the production of the original complaint, if in writing, and permit an inquiry and require full disclosure concerning the informer.

Obligation of secrecy

141. (1) Except for any of the purposes of this Act or for the purposes of any civil or criminal proceedings under any written law or where otherwise authorized by the Minister—

(a) the Commissioner, Deputy Commissioner, Assistant Commissioner, any officer or servant of the Commissioner, any member of the Advisory Committee, any member,

officer or servant of the Appeal Tribunal, any authorized officer or any person attending any meeting or deliberation of the Advisory Committee, whether during or after his tenure of office or employment, shall not disclose any information obtained by him in the course of his duties; and

(b) no other person who has by any means access to any information or documents relating to the affairs of the Commissioner shall disclose such information or document.

(2) A person who contravenes subsection (1) commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding one year or to both.

Things done in anticipation of the enactment of this Act

142. All acts and things done by any person in preparation for or in anticipation of the enactment of this Act and any expenditure incurred in relation thereto shall be deemed to have been authorized under this Act, provided that the acts and things done are consistent with the general intention and purposes of this Act; and all rights and obligations acquired or incurred as a result of the doing of those acts or things including any expenditure incurred in relation thereto, shall on the coming into operation of this Act be deemed to be the rights and obligations of the Commissioner.

Power to make regulations

143. (1) The Minister may make such regulations as may be necessary or expedient for the purpose of carrying into effect the provisions of this Act.

(2) Without prejudice to the generality of the powers conferred by subsection (1), the Minister may make regulations for all or any of the following purposes:

(a) to regulate all matters relating to the registration of data controllers under this Act, including to prescribe the registration fees and renewal fees;

(b) to regulate all matters necessary for the implementation of the Personal Data Protection Principles;

(c) to regulate procedures in respect of the inspection of personal data systems, investigation of complaints and issuance of enforcement notices, and all other matters related to it;

(d) to prescribe the offences which may be compounded and the forms to be used and the method and procedure for compounding the offences;

(e) to provide and prescribe for any fees payable in connection with the provision of any service or any matter under this Act;

(f) to prescribe any matter for which this Act makes express provision to be made by regulations;

(g) to prescribe all other matters as are necessary or expedient to be prescribed for giving effect to this Act.

(3) The regulations made under this section or any other subsidiary legislation made under this Act may prescribe for any act or omission in contravention of the regulations or other subsidiary legislation to be an offence and may prescribe for penalties of a fine not exceeding two hundred and fifty thousand ringgit or imprisonment for a term not exceeding two years or to both.

Prevention of anomalies

144. (1) The Minister may, by order published in the *Gazette*, make such modifications to the provisions of this Act as may appear to him to be necessary or expedient for the purpose of removing any difficulties or preventing anomalies in consequence of the coming into operation of this Act.

(2) The Minister shall not exercise the powers conferred by subsection (1) after the expiration of one year from the appointed date.

(3) In this section, "modifications" means amendments, additions, deletions and substitutions of any provisions of this Act.

PART XI

SAVINGS AND TRANSITIONAL PROVISIONS

Personal data processed before the date of coming into operation of this Act

145. Where a data controller has collected personal data from the data subject or any third party before the date of coming into operation of this Act, he shall comply with the provisions of this Act within three months from the date of coming into operation of this Act.

Registration of persons who process personal data before the date of coming into operation of this Act

146. (1) Subject to subsection (2), any person who at the date of coming into operation of this Act either alone or jointly or in common with other persons processes any personal data or has control over or authorizes the processing of any personal data, shall within three months from the date of coming into operation of this Act be registered as a data controller in accordance with the provisions of this Act.

(2) Subsection (1) shall not apply to a data controller who does not belong to the class of data controllers who shall be required to be registered as data controllers in pursuance of the provisions of Division 2 of Part II.

**NOTE—see* section 14 of the Personal Data Protection (Amendment) Act 2024 [*Act A1727*] w.e.f 1 January 2025 which provides the following provision:

Saving

14. (1) Any order, directions, circular or notice issued or made by the Commissioner immediately before the commencement of this Act shall be deemed to be issued or made by the Commissioner under the principal Act as amended by this Act and shall remain valid.

(2) Any code of practice registered and issued by the Commissioner immediately before the commencement of this Act shall be deemed to be issued or made by the Commissioner under the principal Act as amended by this Act and shall remain valid.

(3) Any investigation, trial, proceedings or action pending before the date of coming into operation of this Act shall, on the date of coming into operation of this Act, be continued in accordance with the provisions of the principal Act as if the principal Act had not been amended by this Act.

LAWS OF MALAYSIA

Act 709

PERSONAL DATA PROTECTION ACT 2010

LIST OF AMENDMENTS

Amending law	Short title	In force from
Act A1727	Personal Data Protection (Amendment) Act 2024	01-01-2025: s. 7, 11, 13 & 14; 01-04-2025: s. 2 – 5, 8, 10 & 12; 01-06-2025: s. 6 & s.9 [P.U. (B) 522/2024]

LAWS OF MALAYSIA

Act 709

PERSONAL DATA PROTECTION ACT 2010

LIST OF SECTIONS AMENDED

Section	Amending authority	In force from
General amendment	A1727	01-04-2025
4	A1727	01-04-2025
5	A1727	01-04-2025
9	A1727	01-04-2025
Division 1A	A1727	01-06-2025
12A	A1727	01-06-2025
12B	A1727	01-06-2025
21	A1727	01-04-2025
43A	A1727	01-06-2025
48	A1727	01-04-2025
67	A1727	01-01-2025
129	A1727	01-04-2025
136	A1727	01-01-2025

PNMB
Trusted Secure Professional

DICETAK OLEH
PERCETAKAN NASIONAL MALAYSIA BERHAD
KUALA LUMPUR
www.printnasional.com.my
email: cservice@printnasional.com.my
Tel.: 03-9236 6888
BAGI PIHAK DAN DENGAN PERINTAH KERAJAAN MALAYSIA
WJW26/0573 31-07-2026